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PLAINTIFF [Pro se] FOR RELIEF 11/17/2022

STATE OF OREGON
CLACKAMAS COUNTY COURTS
FILED

2022 DEC 27 PM 3:59

TYLER ALLEN LOFALL

PLAINTIFF,

V.

1. **COUNTY OF CLACKAMAS**
2. DISTRICT ATTORNEY REBECCA PORTLOCK
3. WEST LINN POLICE DEPARTMENT (rep Kraemer and Lewis)
4. CLACKAMAS COUNTY POLICE DEPARTMENT
5. CLACKAMAS COUNTY JAIL

WEST LINN POLICE OFFICER(s)

6. DANA GUNNERSON (rep Kraemer and Lewis)
7. CAITLIN BLYTH (red Kraemer and Lewis)

CLACKAMAS COUNTY POLICE OFFICER(s)

8. CLACKAMAS COUNTY JOHN DOE POLICE OFFICE #1
9. CLACKAMAS COUNTY JOHN DOE POLICE OFFICER #2

DEFENDANTS,

Case No.:22CV39627

Joanna Lee Bozian,

[the] DECEDENT

And Zac Bond and Teague Bond

[the] HEIRS

(DEFENDANTS ON [Interfered] CASE NO 21CV02575)

Submitted by:
Tyler Allen Lofall
plaintiff pro se
tyleralofall@gmail.com
(386) 262-3322

Tyler A Lofall, tyleralofall@gmail.com 1-(386) 262-3322 PLAINTIFF [Pro se] FOR RELIEF 11/17/2022

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THE CIRCUIT COURT IN THE STATE OF OREGON

FOR THE COUNTY OF CLACKAMAS

TYLER ALLEN LOFALL

Plaintiff,

vs.

COUNTY OF CLACKAMAS, DA REBECCA PORTLOCK, WEST LINN POLICE DEPARTMENT, CLACKAMAS COUNTY POLICE DEPARTMENT, WEST LINN POLICE OFFICER DANA GUNNERSON, WEST LINN POLICE OFFICER CAITLIN BLYTH, CLACKAMAS COUNTY POLICE OFFICE #1, CLACKAMAS COUNTY POLICE OFFICER #2

Defendant,

THE ESTATE OF JOANNA LEE OZIAN

TEAGUE BOND & ZAC BOND

DEFENDANTS (2)

Heirs of Joanna Lee Bozian,

Case No.:22CV39629

BRIEF

PRECOMPLAIT INFO & AMENDED COMPLAINT

42 USC 1983 claim (Included) A TORT & CONTRACT COMPLAINT INTERFERRED BY A FALSE ARREST

IN [ADDITION]/SUPPORT OF PLAINTIFFS FALSE ARREST CLAIM REGARDING CASE 21CV02575

COME NOW, I Tyler Allen Lofall, hereon Plaintiff/Petitioner, petition the court in this matter on my own behalf in a pro se capacity. Plaintiff alleges and states as follows:

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Preliminary Statement

1) Plaintiff was injured by the actions of the defendants preventing the Plaintiff from receiving the fruits to a contract he had with Joanna Lee Bozian, "the Decedent", where Joanna had assigned her rights to proceeds [from her homeowner's insurance claim that she had with Assurant after a fire that occurred December 10th, 2018], to the Plaintiff "Irrevocably" prior to her death.

2) [Heirs], Zac Bond, and Teague Bond, by use of fraud amongst other misconducts and tortious actions used their fiduciary role to intercept the proceeds to the already assigned, completed, and expenses paid for by Plaintiff, in good faith with consideration given [by the Plaintiff] in full.

CASE 21CV02575

[PROCEDURAL BEGINNING]

3) AS STATED IN **ORCP(4)(M)** - ***PERSONAL REPRESENTATIVE***: -

> "In any action against a personal representative to enforce a claim against the deceased person represented where one or more of the grounds stated in sections A through L would have furnished a basis for jurisdiction over the deceased had the deceased been living. It is immaterial whether the action is commenced during the lifetime of the deceased."

4) Heirs, and heirs counsel intentionally mislead the Plaintiff to believe false legal facts about said claim, and when the heirs denied Plaintiffs Probate claim, Plaintiff responded with legal action.

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5) Plaintiff Filed Civil Claim number 21CV02575 was then filed on or about the 25th of January 2021 when the Heirs under false allegations notified the Mortgage company that Plaintiffs "Assignment of Benefits" ("AOB") was fraudulent, in order to recover Plaintiffs Claim he completed for the Decedent in exchange for $111,943.56.

6) Heirs expected intercept the value of said claim due to Plaintiff being financially incapacitated due to finishing the claim prior to payment from the insurance company, leaving him financially vulnerable.

7) IN COMPLIANCE WITH **ORCP 7(F)(3) - *WRITTEN ADMISSION*:**

"In any case proof may be made by written admission of the defendant."

8) Plaintiff had delivered the complaint, and material evidence to the Heirs Counsel, Joseph McDonald at his place of business at the following address:

SMITH, McDonald VAUGHT &RUDOLPH. LLP Attorneys at Law
1100 S.W. Sixth Avenue, Suite 1400
Portland, Oregon 97204-1016

STATEMENT OF FACTS

9) Instead of helping plaintiff, who was clearly suffering from injuries caused by overworking and interjecting his life into the position of protecting and fixing the burned down hoarder home; stretched so thin financially to finish work that the

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heirs for some reason think the Plaintiffjjj34be finished with the property. Plaintiff had his time, money, and material protected by the Assignment of Benefits, [a standard in the industry] all wrongfully taken.

10) Defendants had used a series of premeditated attacks by using bad law, false testimony, and denials in order to convince the court a handful of half-truths, causing an enormous number of damages to the Plaintiff.

11) Heirs used more energy sabotaging the Plaintiff, preventing him from a clean exit than anything else, destroying his property, his computers, the heater, his tools, and the repairs he previously finished in order to be paid for the claim.

12) Defendants intentionally and willfully created a situation where they could convince the courts and mortgage company stories that prevented Plaintiff from collecting what he was owed. When work was complete, they refused to acknowledge it [even though previously giving false promises to the Plaintiff that they would walk through the work completed by the Plaintiff, and document everything together, as it was a protection step Plaintiff was requesting to voluntarily leave the property].

13) Instead, evicting only the Plaintiff, defendants continuously entering the Plaintiffs residence without permission, even on Thanksgiving and Christmas day. Stealing whatever they wanted without regard of ownership, anything to make life at the property less enjoyable, or completion of the job harder to reach.

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14) The Defendants actions caused three families to end up homeless and the crew in the ER, with irreparable damages both physical and financial. The heirs and their attorney ignorantly attacked with false law; carelessly, intentionally, and illegally taking the fruits of the irrevocable Assignment of Benefits, meanwhile threatening [that the] Plaintiff ..."will be arrested, and going to prison for trespassing on our [the defendants] property!" they called the police, they lied in court1] It was not until the false testimony rendered the Plaintiff Homeless and the heirs ultimately cost the Plaintiff all of his property, his freedom, his reputation, his health... and they were entitled to none of it, nor they had any sort of relationship with the decedent and hadn't been to the property in 20 years.... Yet they destroyed another life by using the good faith and heart of the Plaintiff to coerce.

15) **Adverse Presumption:** Oregon has a statutory provision allowing that willful suppression of evidence raises an unfavorable presumption against the party who suppressed it. O.R.S. § 40.135, Rule 311(1)(c); *Stephens v. Bohlman*, 909 P.2d 208, 211 (Or. Ct. App. 1996).

CRUX OF THE [DEFENDANTS DEFENSE]/CASE

Three Reasons why the Defendants Motion for Summary Judgement should have been denied, and/or Plaintiff will bring this case on appeal/reconsideration; and if Plaintiffs claims had survived, Plaintiff with an assignment on the insurance contract between the Decedent and Assurant is irrevocable, nonnegotiable. Defendants committed fraud to get it.

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16) The Defendants claim that the Plaintiff had no license in the state of Oregon, as per ORS chapter 701 requires; and this was their reasoning behind convincing the mortgage company that Plaintiff had fraudulently introduced the Assignment of Benefits. This cannot hold, for the following (three) reasons:

ORS 701.010 (7) **(1).** **[PLAINTIFF] EXEMPTION FROM LICENSURE; RULES**	**"A Person performing work on a property that person owns or performing work as the owner's employee, whether the property is occupied by the owner or not, or a person performing work on that person's residence, whether or not that person owns the residence.** *[subsection 701 does not apply to a person performing work on a structure owned by that person or the owner's employee, if the work is performed in the pursuit of an independent business with the intent of offering the structure for sale before, upon, or after completion.]"* *ORS 701.010 (7)*
(2). DAMASCUS IS UNINCORPORATED -	DOES NOT REQUIRE A LICENSE NOR DO THEY INSPECT FOR ONE.
(3). **THERE IS AN ASSIGNMENT OF BENEFITS ASSIGNING THE CONTRACT BETWEEN ASSURANT AND THE DECEDENT TO THE PLAINTIFF.**	AN ASSIGNMENT CAN BE GIVEN TO ANYONE REGAURDLESS OF LICENSE ... IT IS IRREVOKABLE AND ASSIGNS INSTANTLY, THEREFOR WAS ASSIGNED ON JUNE 24th, 2022. by the Decedent while alive, therefore not the Defendants to inherit.

BUILDING ON THE RECENT PRECEDENT ESTABLISHED IN RYERSON INC. V. FEDERAL INSURANCE CO., THE SEVENTH CIRCUIT AGAIN LIMITED THE APPLICATION OF THE MEND-THE-HOLD DOCTRINE IN THE CONTEXT OF AN INSURANCE-COVERAGE DISPUTE.

THE MEND-THE-HOLD DOCTRINE, WHICH ACQUIRED ITS NAME FROM A 19TH CENTURY WRESTLING TERM, PREVENTS A DEFENDANT FROM CHANGING ITS DEFENSE STRATEGY IN THE MIDDLE OF LITIGATION. PARTIES, PARTICULARLY POLICYHOLDERS, HAVE ATTEMPTED TO USE AN EXPANDED FORM OF THE DOCTRINE TO PREVENT INSURERS FROM RAISING

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DEFENSES IN COVERAGE LITIGATION THAT WERE NOT INCLUDED IN PRE-LITIGATION CORRESPONDENCE SENT BY THE INSURER.

IN AMERISURE INSURANCE CO. V. NATIONAL SURETY CORP., THE APPELLANT-INSURERS SOUGHT CONTRIBUTION FROM ANOTHER INSURER, SCOTTSDALE INSURANCE COMPANY ("SCOTTSDALE"), FOR AN UNDERLYING SETTLEMENT. THE DISTRICT COURT GRANTED SCOTTSDALE'S MOTION FOR SUMMARY JUDGMENT AND HELD THAT SCOTTSDALE HAD NO COVERAGE OBLIGATIONS BECAUSE OF A CROSS-LIABILITY EXCLUSION IN ITS POLICY. ON APPEAL, THE APPELLANTS ARGUED, INTER ALIA, THAT THE MEND-THE-HOLD DOCTRINE PREVENTED SCOTTSDALE FROM ASSERTING A DEFENSE BASED ON THE CROSS-LIABILITY EXCLUSION BECAUSE SCOTTSDALE'S PRE-TRIAL COMMUNICATIONS DID NOT INDICATE ITS INTENT TO RELY ON THE EXCLUSION BUT, RATHER, HAD ONLY MENTIONED DIFFERENT DEFENSES.

WHEREFORE THE DEFENDANTS HAVE NO MORE DEFENSE IN THESE MATTERS AND THEREFORE IT WOULD BE IN ALL FAIRNESS TO NOT ALLOW THE DEFENDANTS TO FURTHER OBJECTIONS AND COMPENSATE THE PLAINTIFF FOR ALL THE HARMS THEY HAVE CAUSED.

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17) The defendants were not privy to the contract as they had zero communications with the decedent/their mother[mother-in-law], and neither heir had been to the properties in two decades. The Defendants have given false allegations, (proven within their own communications, see filings submitted on or around Jan 9th, 2022) and have caused an enormous number of damages so far to the Plaintiff and his help.

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PLAINTIFFS REQUESTED DAMAGES

18) Plaintiff is owed not only for the intercepted proceeds, but due the defendants and their councils actions, Plaintiff sustained additional damages including being rendered homeless and losing all his property, and trust that people have in his ability to provide, and Plaintiff is seeking interest, legal fees, non-economic and economic damages, as well as the defendants were responsible for consequential "problems", and the Plaintiff asks that they be responsible for "consequential damages" attached there to those "consequential problems" that arose "consequentially" from those "actions" from the Defendants, [problems]...whether it be in treble damages, actual damages or punitive damages, if so allows.

POINTS AND AUTHORITIES

(§11.11) THIRD-PARTY BENEFICIARY CONTRACTS AN ACTION MAY BE BROUGHT BY A PARTY WITH WHOM OR IN WHOSE NAME A CONTRACT HAS BEEN MADE FOR THE BENEFIT OF ANOTHER. FRCP 17(A)(1)(F). THUS, THE MAKER OF A THIRD-PARTY BENEFICIARY CONTRACT IS A REAL PARTY IN INTEREST. THE BENEFICIARY IS ALSO A REAL PARTY IN INTEREST. ADVISORY COMMITTEE NOTE, FRCP 17 (1966). OREGON LAW RECOGNIZES THE RIGHT OF A THIRD-PARTY BENEFICIARY TO MAINTAIN AN ACTION ON THE CONTRACT. CRAPPER V. BERLINER'S, INC., 269 OR 117, 123 N 4, 523 P2D 1025 (1974); HALE V. GROCE, 304 OR 281, 286, 744 P2D 1289 (1987).

ASSIGNMENT OF RIGHTS IS A "COMPLETE TRANSFER OF RIGHTS TO RECEIVE BENEFITS" ACCRUING TO ONE PARTY UNDER A CONTRACT. PERFORMANCE OF A

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CONTRACT MAY BE ASSIGNED AS LONG AS THE CONTRACTING PARTIES PROVIDE THEIR CONSENT TOWARDS THE ASSIGNMENT. HOWEVER, THE ACT OF ASSIGNMENT NEEDS TO BE LOOKED AT FROM THE PERSPECTIVE OF THE CONTRACTING PARTIES. ESSENTIALLY, THERE ARE THREE PARTIES INVOLVED, NAMELY, THE ASSIGNOR, ASSIGNEE AND OBLIGOR."

AN IMPORTANT PRINCIPLE AFFECTING ASSIGNMENTS IS THAT THE BURDEN OR LIABILITY UNDER A CONTRACT CANNOT BE ASSIGNED. ESSENTIALLY, THE MOOT QUESTION THAT OFTEN ARISES IS WITH RESPECT TO [THE] ASSIGNMENT OF "RIGHTS" [&] by [THE] ASSIGNMENT OF "OBLIGATIONS". THE SUPREME COURT DISTINGUISHED BETWEEN ASSIGNMENT OF "RIGHTS" AND "OBLIGATIONS". THE COURT UPHELD THAT:

> "An assignment of a contract might result by transfer either of the rights or of the obligations thereunder. But there is a well-recognized distinction between these two classes of assignments. As a rule, obligations under a contract cannot be assigned except with the consent of the "promisee", and when such consent is given, it is really a novation resulting in substitution of liabilities. On the other hand, rights under a contract are assignable unless the contract is (A) personal in its nature, (or B) the rights are incapable of assignment either under the law or under an agreement between the parties".

PRIMARILY, THE COURT CLARIFIED THAT OBTAINING PRIOR CONSENT TO ASSIGN "OBLIGATIONS" UNDER A CONTRACT WOULD BE CONSIDERED AS NOVATION AS IT WILL RESULT INTO q OF LIABILITIES AND OBLIGATIONS TO THE ASSIGNEE.

MOREOVER, INTRODUCTION OF A NEW PARTY INTO AN EXISTING CONTRACT WILL RESULT INTO NOVATION OF A CONTRACT I.E. CREATION OF A NEW CONTRACT BETWEEN ORIGINAL PARTY AND NEW PARTY. AS THE COURTS HAVE INTERPRETED THAT TRANSFER OF OBLIGATIONS CAN BE UNDERTAKEN THROUGH NOVATION, THE ASSIGNMENT CLAUSE IN A CONTRACT MUST CLEARLY DEAL WITH NOVATION, IF THE INTENTION IS TO TRANSFER OBLIGATIONS.

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19) Since the Decedent/Assignor had no obligations owed to the insurance company, [as it has been upheld many times by the Supreme Courts primarily in the states that are subject to hailstorms] that even in the case of [a] "no assignment clause" [as long as the assignment is "POST LOSS"], the rights to the claim are in fact assignable.

20) Even though there was nothing the Plaintiff was required to do for the defendants [or the decedent if she was still alive]; Plaintiff, still in good faith [was asked] many times for favors, and extras ultimately increasing the value of the property (that was later passed to the defendants on by testate succession) by over a quarter million dollars... only for the Plaintiff to be used, stolen from, violated, and left homeless in the ice storm of February 2021.SEE EXHIBIT 7B. (DEC of Sandra Casey).

21) The defendants knew of the assignment, conferring with the Plaintiff multiple times as shown in: Exhibit 6 more clearly lines 600-700 (Zac and Tyler's emails), in the case history with Defendants Admissions [that contradict allegations and statements the defendants gave in their filings [displaying evidence in their lack of honesty] on the stand, and within email conversations with Plaintiff].

22) Moreover the Plaintiff's allegations are supported by declarations from: Angala Miles (witness to the contract being signed, also a notary), Ron Philips (Contractor that employed Plaintiff at the time Plaintiff was recruited by the decedent in 2017, and the one who was witness to the heirs faulty actions, and picked up Plaintiffs

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last trailer), Sandra Casey (licensed field adjuster, and certified residential appraiser that assisted in the approved supplemental Xactimate scope of loss that was approved and paid by Assurant, with the understanding that Plaintiff was complete and this was his final invoice.

23) Document trails of the Defendants factual actions, reveal a malicious and tortious path full of difficult hurdles that were strategically left to "booby trap" the Plaintiff into potentially [and was/did in fact] cause a loss in proceeds due to difficulties in civil procedure and procedural errors only effective against a pro se litigant.

NOTE: THIS IS WHERE PROFESSIONAL MISCONDUCT LAID HIDDEN, NO LAWYER WOULD ATTEMPT THE FLIVEROUS AND TORTIOUS ACTIONS AGAINST SOMEONE TALENTED IN LAW, THEY WOULD BE QUICKLY EXPOSED MOREOVER, AN ILLEGAL WASTE OF MONEY.

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24) Plaintiff was assigned [the mentioned] proceeds included in the s assigned by the decedent herself, and Plaintiffs petition to the court in pursuant to the regulations of the UCC primarily article two, five, and nine, [article 9 Uniform Commercial Code-Secured Transactions. [2001 c.445 §1] and the Uniform Declaratory Judgments Act, alternatively in pursuant to ORCP 82] and other relief and in support would show:

25) Although Plaintiff had followed the law to the best of his ability and knowledge, giving value in good faith, doing above and beyond the agreed upon

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considerations, this fact was UNDISPUTABLE and was/is irrelevant after the "Assignment of Benefits" was signed on or about June 24th, 2020,

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SEE ORS 114.315 RIGHT TO PERFECT LIEN OR SECURITY INTEREST. A PERSONAL REPRESENTATIVE HAS THE SAME RIGHTS TO PERFECT A LIEN OR SECURITY INTEREST AS THE DECEDENT WOULD HAVE HAD IF THE DECEDENT WERE LIVING. [1969 C.591 §128].

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26) Consideration was given, the assignment was assigned, irrevocably transferring full rights to the Plaintiff the moment it was assigned; in other words, the Proceeds were not the Decedents at the time of her death, meaning those rights were not the Defendants to inherit.

27) Additionally, The Heirs not being at the Property for two decades, had zero Idea of the condition of the estate prior to the Plaintiff entering upon it. At the time of Joanna's Death, there was paperwork that JP Morgan needed to be signed by the "homeowner" to release the funds, and since Joanna Died the "personal representative of the estate" needed to sign them in order to release the funds. Plaintiff gave all the documents to the Heirs of Joanna, and because they lived two hours away, and at the time Teague Bond, Daughter of the decedent was not yet elected as Personal representative of the estate, they were going to send the documents from Eugene once they were able to.

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28) The Defendants, having no knowledge of the condition of the property nor the value given by the Plaintiff, had no right, or excuse to intentionally [or even plausible mistake] leaving out the Plaintiffs deposit documents and maliciously inserted their own. Defendants with full intent [and success] into fraudulently using their fiduciary duty to intercept a $64,523.71 proceed check Assigned to Plaintiff, and blocked Plaintiff from all communication with the mortgage company about the claim that Plaintiff had just spent two years completing and paid for everything personally. (SEE ATTACHED DECLARATION OF SANDRA CASEY (Exhibit 7 & 7B on case 21CV02575), EXPERT FIELD ADJUSTER AND HOMEOWNER APPRAISOR, that completed the Xactimate paperwork (EXHIBIT4) after the fire testifying a $250,000 value increase in the property, matching Plaintiffs EXHIBIT 22, 23, and 24)

29) meanwhile leading Plaintiff to believe there was nothing wrong, and he was going to have no issues in receiving Plaintiffs secured Assignment, Defendants through fraud, used their fiduciary powers to interject their selves into position to fraudulently intercept Plaintiffs Claim, leaving Plaintiff to no options except to become homeless due to expectations being eliminated after Plaintiff paid of everything on the claim out of his own pocket, in good faith and fair dealing.

30) At some time in late October or November 2020, JP Morgan, was told that Plaintiff had forged the assignment, and not to communicate with him anymore. JP Morgan then told Plaintiff that he would need a court order in order to communicate any

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further with Plaintiff. The information that caused the blocking of communication by JP Mortgage stemmed false accusations from Defendant Heir Teague Bond.

31) Plaintiff then learned that the Heirs had made disparaging remarks about the quality, and legality of said Assignment of Benefits, and additionally Plaintiffs services, integrity, and professionalism to the home that JP Morgan still was partial owner of, and that Teague Bond had made false allegations claiming Plaintiff Fraudulently presented them with the Assignment of Benefits entitling Plaintiff to the Proceeds from the now finished claim.

32) Plaintiff then had his proceeds wrongfully taken by the Heirs., his property tossed outside in the mud breaking his computers, his materials, [more importantly the means to defend his self in these matters here] a total of 3000lbs of personal property shown in Exhibit 20, destroying the spirit, and will of Plaintiff and two of his helpers finishing up the claim in order to double and triple make sure that there was no issues upon the collection of the proceeds that Plaintiff had now been patiently waiting for and deeply invested in since his arrival at the property.

ORS 95.240 TRANSFERS FRAUDULENT AS TO PRESENT CREDITORS.:

A TRANSFER MADE OR OBLIGATION INCURRED BY A DEBTOR IS FRAUDULENT AS TO A CREDITOR WHOSE CLAIM AROSE BEFORE THE TRANSFER WAS MADE OR THE OBLIGATION WAS INCURRED IF THE DEBTOR MADE THE TRANSFER OR INCURRED THE OBLIGATION

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WITHOUT RECEIVING A REASONABLY EQUIVALENT VALUE IN EXCHANGE FOR THE TRANSFER OR OBLIGATION AND THE DEBTOR WAS INSOLVENT AT THAT TIME OR THE DEBTOR BECOMES INSOLVENT AS A RESULT OF THE TRANSFER OR OBLIGATION.

A TRANSFER MADE BY A DEBTOR IS FRAUDULENT AS TO A CREDITOR WHOSE CLAIM AROSE BEFORE THE TRANSFER WAS MADE IF THE TRANSFER WAS MADE TO AN INSIDER FOR OTHER THAN A PRESENT, REASONABLY EQUIVALENT VALUE, THE DEBTOR WAS INSOLVENT AT THAT TIME AND THE INSIDER HAD REASONABLE CAUSE TO BELIEVE THAT THE DEBTOR WAS INSOLVENT. [1985 C.664 §5]

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33) Affiant states that Affiant is Claimant and that Claimant has given credit to the Estate for payments and offsets to which he is entitled and that the balance claimed as above stated is justly due, and as statements show from the attached documents, the insurance company approved $111,943.56, and all but $6,533.88 (and the deductible) has been released by the insurance company [as of Feb 2021, and in the possession of the defendants]. $6,533.88 was Plaintiffs depreciation money also left at the insurance company, upon blocking of the claim rights by the defendants.

34) Moreover, the defendants intentionally damaged areas of the house that Plaintiff did repair and did so that they could claim that those areas were not finished or had issues created by plaintiff, then quickly posted the house, selling it for over $100,000.00 less than it was valued at so that it would sell in a matter of days cash for asking value, and be impossible to debate for Plaintiff. The defendants then removed expensive areas of the house in order to claim that the Plaintiff

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negligently installed the repairs when the pictures clearly monument the new styles and materials that valued many times the original insured, a choice made by the decedent and none-the-less was not the hairs to make.

ORS 95.260 CREDITOR'S REMEDIES.

IN ANY ACTION FOR RELIEF AGAINST A TRANSFER OR OBLIGATION UNDER ORS 95.200 TO 95.310, A CREDITOR, SUBJECT TO THE LIMITATIONS PROVIDED IN ORS 95.270, MAY OBTAIN:

- AVOIDANCE OF THE TRANSFER OR OBLIGATION TO THE EXTENT NECESSARY TO SATISFY THE CREDITOR'S CLAIM.
- AN ATTACHMENT OR OTHER PROVISIONAL REMEDY AGAINST THE ASSET TRANSFERRED OR OTHER PROPERTY OF THE TRANSFEREE IN ACCORDANCE WITH THE PROCEDURE PRESCRIBED BY ANY APPLICABLE PROVISION OF ANY OTHER STATUTE OR THE OREGON RULES OF CIVIL PROCEDURE.
- SUBJECT TO APPLICABLE PRINCIPLES OF EQUITY AND IN ACCORDANCE WITH APPLICABLE RULES OF CIVIL PROCEDURE:
- AN INJUNCTION AGAINST FURTHER DISPOSITION BY THE DEBTOR OR A TRANSFEREE, OR BOTH, OF THE ASSET TRANSFERRED OR OF OTHER PROPERTY.
- APPOINTMENT OF A RECEIVER TO TAKE CHARGE OF THE ASSET TRANSFERRED OR OF OTHER PROPERTY OF THE TRANSFEREE, OR
- ANY OTHER RELIEF THE CIRCUMSTANCES MAY REQUIRE.

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(2) IF A CREDITOR HAS OBTAINED A JUDGMENT ON A CLAIM AGAINST THE DEBTOR AND IF THE COURT SO ORDERS, THE CREDITOR MAY LEVY EXECUTION ON THE ASSET TRANSFERRED OR ITS PROCEEDS. [1985 C.664 §7]

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35) The Defendants then denied two claims Plaintiff had filed with the probate and filed an eviction on only him at the house, leveraging Plaintiff at his most vulnerable times, only then was the motives of the defendants' misconduct and faulty actions discovered. Further the Defendants not willing to give any money to hire a lawyer [when he was owed over $80,000 and they just intercepted a $64,943.56 check by means of fraud] nor allow Plaintiff to remove Plaintiffs personal property, that due to issues outside of his control (ice storm of February 2021, Heirs destroying Plaintiffs property shown in Exhibit 20 on claim 21CV02575, and the previously banned guests that the heirs let come in and flood the basement, preventing Plaintiff from being able to have his help assist in a smooth exit), as out of the property, they were trying to force him to look like the bad guy, to harmed to defend his self.

36) Meanwhile Plaintiff had emptied his 401k and was extremely patient for the breaching year prior where he personally interjected his life into an extreme vulnerable situation to protect Joanna, the defendants mother [mother in law] entirely in good faith and fair dealing with trust of the fiduciary duties that every one of the defendants, the decedent, and their counsel all breached their fiduciary duties they had over the Plaintiff.

ORS 95.290 GENERAL PRINCIPLES OF LAW AND EQUITY AS SUPPLEMENT TO ORS 95.200 TO 95.310. UNLESS DISPLACED BY THE PROVISIONS OF ORS 95.200 TO 95.310, THE PRINCIPLES OF LAW AND EQUITY, INCLUDING THE LAW MERCHANT AND THE LAW RELATING TO PRINCIPAL AND AGENT, ESTOPPEL,

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LACHES, FRAUD, MISREPRESENTATION, DURESS, COERCION, MISTAKE, INSOLVENCY OR OTHER VALIDATING OR INVALIDATING CAUSE, SUPPLEMENT ITS PROVISIONS. [1985 C.664 §10]

95.300 UNIFORMITY OF APPLICATION AND CONSTRUCTION. ORS 95.200 TO 95.310 SHALL BE APPLIED AND CONSTRUED TO EFFECTUATE ITS GENERAL PURPOSE TO MAKE UNIFORM THE LAW WITH RESPECT TO THE SUBJECT OF ORS 95.200 TO 95.310 AMONG STATES ENACTING IT. [1985 C.664 §11]

95.310 SHORT TITLE. ORS 95.200 TO 95.310 MAY BE CITED AS THE UNIFORM FRAUDULENT TRANSFER ACT. [1985 C.664 §12]

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37) Defendants targeted the Plaintiff, for which they designed a series of attacks specifically to harm his specific condition to try and get him to lose his claim, and started this series of attacks:

38) by first assuring Plaintiff that everything will be unchallenged resulting in Plaintiff putting down his guard.

39) Then while denying Plaintiffs Probate claim when he did not even know he was submitting a probate claim,

40) Told the Mortgage company that Plaintiff had fraudulently created the Assignment of Benefits and told them not to speak to him.

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41) Used a contractor to try and use word spin in order to invalidate potential lien rights (this is when Plaintiff first yielded to the intentions of the defendants).

42) The Defendants swapped out Plaintiffs bank deposit information when Plaintiff had given the Defendants the paperwork to submit for the final inspection.

43) The Assigned Proceeds were then directly deposited into the bank account of the Defendants and not the Plaintiff.

44) Defendants denying Plaintiffs Probate claim by pulling out an example document Plaintiff had given Zac Bond and it was used as a claim un beknown to Plaintiff.

45) pushing some other document not intended for the claim to be denied

46) Then initiating an Eviction and serving the back door [that went unnoticed] Plaintiff asked why "he was the only one being evicted.", defendants directly stated using the excuse Plaintiff "was the only one trying to stay" at the property.

47) when two of the three people at that time, had been squatters there for 20 years,

48) The other people the Defendants had let take roots back on the property were people previously banned from the property, that the decedent wanted Plaintiff to produce a way to ensure the removal stay in place, [160' fence that was previously

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installed]. And these people caused an enormous number of issues and damages for the Plaintiff.

iii) yet Plaintiff was trying to leave the whole time yet felt obligated to stay and remedy the problem, and deeply invested.

49) Defendants broke the heater, and stove in spike to make it less comfortable.

50) They Pitched Plaintiffs property out into the yard breaking much of plaintiff's property (SEE EXHIBIT 20 on case 21CV02575)

51) Plaintiff was led to believe everything as discussed, that Plaintiff was not going to have an issue receiving his assigned money (See Exhibit 6 Lines 600-700)

52) This belief was kept until it was too late to legally remedy the problem because the defendants had gotten a head start on the Plaintiff and set their selves up using fiduciary powers they had just been registered for and plaintiff was left vulnerable with no time to stop it.

53) They led plaintiff to believe they had no money, and Plaintiff being financially out, told them he was pulling the last of his 401k to finish the house.

54) The defendants also knew that Plaintiff was struggling to get the trailers out of the house without needed maintenance.

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55) Heirs then intercepted the claim.

56) Initiated an eviction

57) Heirs came insider the house constantly without notice,

58) 3000lbs of Plaintiffs property and material as well as the decedent, and other people from the houses' stuff was thrown into the yard

59) Computers were broken.

60) Claim right notice that had been underway for some time.

61) Lining up claim right deadline to slightly land after eviction.

62) Eviction stated the Plaintiff was a "guest" and he had been at the property for 3.5 years.

63) Plaintiff had paid for the remodel with his own money, and still has not been repaid.

64) The eviction was required by the courts to be online, and Plaintiff had his paperwork bounce due to not having the e-file funds in an account to submit it.

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65) Plaintiff had a hardship waiver signed and to the Defendants.

66) Plaintiff was evicted with 3 days' notice on or about the 19th of Jan, there was no way he could be out in time.

67) Defendants were hoping Plaintiff was going to not have the time to file a complaint since he now had nothing and no way to create it, and the heirs had intercepted the payments of the Plaintiff.

68) Heirs newly added guests previously banned had fifty arrests at the property over the time they were there. (They knew they were no good, one went to prison for beating up Joanna).

69) The defendants extorted the Plaintiff for his money to get him out of the house… telling him it was not going to affect claim rights.

70) PLAINTIFF FILED A CIVIL CLAIM 21CV02575

71) Then the Plaintiff had rights to stay but did not know them yet.

72) The Defendants counsel assured Plaintiff he would lose all his stuff if he did not take $7,000 move out money and no harm to the claim rights.

73) Defendants then gave $3000, and $4000 was due upon move out

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74) The Defendants stiffed the Plaintiff the $4000

75) They lied on every answer they gave

76) Plaintiff was leveraged to and forced into entering the courtroom Pro Se; move three trailers across the state with no truck [because it was lost trying to accommodate the defendants haste demands], downed a loaded trailer, time, reputation, health, and finances in an all-time low directly because of the defendants, and they couldn't care less. Not only did they not lend a helping hand; They sand bagged the actions Plaintiff had to take so that they could take what is not theirs by forcing him to miss a procedural step and lose his window to be paid for work he had done. Their direct actions caused duress as he ran headfirst into being homeless while forced to take a deal for $7000, on a $111,943.56 claim, of which even this was too much for them and only $3000 was given before Plaintiff was evicted under false pretenses in the heart of covid [with four trailers worth of property, now all lost], and only days to do air. They false leaked information to one of the guests that was causing intentional harm at the property for the defendants and told Plaintiff they had already called the police during the ice storm so strong that the city was in a state of emergency, because Plaintiff didn't "walk to a hotel" as demanded by the defendants in single digit temperatures with roads shut down. Plaintiffs' property that had been thrown out in the yard, in mud and rain, mixed in a huge pile with Jolies, and the other people still living at the house…

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77) The front yard, just months before, was beautiful, now a disaster, covered in everybody's personal property but the defendants, yet they felt entitled to destroy everything. To add to the chaos One of the 20-year squatters flushed a whole role of paper towels down the toilet in spite, clogging and flooding the house with sewage and then still Plaintiff loyally and good faith to the property, spent two days trying to fix it all because he had people coming to help him pack and needed water. In the end, he found that there were fresh paper towels in the toilet with no human waste… [He was being sabotaged]. Then he took all 3000lbs of now garbage to the dump, thrown out by Zac and Teague into the yard along with kitchen drawers, cabinets, material he had purchased, and irreplaceable personal property because the defendants were lawless and just wanted it to be impossible to collect.

78) On the 25th of January 2021, Plaintiff filed a Complaint in the Clackamas County Court house, demanding payment from the defendants that they have fraudulently used their fiduciary powers to interject by convincing the mortgage company to send them the proceeds the Plaintiff was intitled to.

79) Unbeknown to Plaintiff at that time (and for over a year), somehow his Declaration attached as one with his Complaint as one document, did not get filed with the Complaint. The Plaintiff tried to give several motions to leave to amend complaint, but without knowing that a large portion of his complaint was missing, he had no way of figuring out "why" his amendments kept being denied.

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80) The trial court granted defendants Summary Judgement Motion for partial summary judgement against plaintiffs *Intentional Interference with Contractual Agreement/Economic relations*, and *Tortious Infliction of Emotional Distress* claims, both in regard to "Failure to State a claim in which relief may be granted". The trial court added the option from a request that Plaintiff had on his most recent request to amend his complaint, Judge R------ held that he was leaving a claim for Unjust Enrichment, that the plaintiff had tried to include on his amendment, allowing the Plaintiff to work out the details with the defendants' counsel Joseph McDonald.

81) Defendants Counsel showed no efforts to help, and in fact specifically stated "he [I] did[do] not have the time to explain this" [to plaintiff], when simply letting Plaintiff know, he was missing a large portion of his complaint would have changed everything. Instead, the Defendants tried to push through these counts that were pitfalls to those counts mentioned above, and they were removed on the summary judgement hearing on April 21st, 2021.

DEFENDANTS LIED ON THE ANSWER, AMENDED ANSWER, ON THE STAND, AND THEY LIED IN ORDER TO BE IN POSITION TO INTERCEPT PLAINTIFFS' ASSIGNMENT CONTRACT WORTH $111,943.56. (See Filings Submitted on or about JAN 9th, 2022)

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82) Therefore, plaintiff asks this court to reverse the trial court's decision to grant summary judgment and to grant a new trial with leave to amend/supplement

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complaint and bring the case back to the time prior to the false testimony of the defendants. Even in the event that the contract was unenforceable, the assignment of benefits was not, and it was assigned before the decedent ever died, making the proceeds wrongfully taken by: a breach of fiduciary duty, a theft of services, deceit, fraud by the defendants… creating a responsibility for all damages inflicted on the Plaintiff, and as clearly outlined by law "that [where] Justice so requires" the Plaintiff needs a [de novo] trial by Jury where he may be compensated and reimbursed for this unjust enrichment.

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SUMMARY

83) Instead of helping plaintiff, who was clearly suffering from injuries caused by overworking and interjecting his life into the position of protecting and fixing the burned down hoarder home; stretched so thin financially in order to be finished with the property. Plaintiff had his time, money, and material protected by the Assignment of Benefits, [a standard in the industry] all wrongfully taken.

84) Defendants had used a series of premeditated attacks by using bad law, false testimony, and denials in order to convince the court a handful of half-truths, causing an enormous number of damages to the Plaintiff.

85) Heirs used more energy sabotaging the Plaintiff, preventing him from a clean exit than anything else, destroying his property, his computers, the heater, his tools, and the repairs he previously finished in order to be paid for the claim. Defendants intentionally and willfully created a situation where they could convince the courts and mortgage company stories that prevented Plaintiff from collecting what he was owed. When work was complete, they refused to acknowledge it [even though previously giving false promises to the Plaintiff that they would as it was a protection step Plaintiff was requesting in order to voluntarily leave the property].

86) Instead, evicting only the Plaintiff, defendants continuously entering the Plaintiffs residence without permission, even on Thanksgiving and Christmas day. Stealing

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whatever they wanted without regard of ownership, anything to make life at the property less enjoyable, or completion of the job harder to reach.

87) The Defendants actions caused three families to end up homeless and the crew in the ER, with irreparable damages both physical and financial. The heirs and their attorney ignorantly attacked false law, carelessly, intentionally, and illegally taking the fruits of the irrevocable Assignment of Benefits, meanwhile threatening [that the] Plaintiff ..."is going to prison for trespassing on our [the defendants] property!" they called the police, they lied in court [all proven] It was not until the false testimony rendered the Plaintiff Homeless and the heirs ultimately cost the Plaintiff all of his property, his freedom, his reputation, his health... and they were entitled to none of it, nor they had any sort of relationship with the decedent and hadn't been to the property in 20 years.... Yet they destroyed another life by using the good faith and heart of the Plaintiff to coerce.

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ARGUMENT

1) **THE TRIAL COURT ERRED IN GRANTING SUMMARY JUDGMENT TO DEFENDANTS BECAUSE DEFENDANTS BREACHED THEIR DUTY OF CARE TO PLAINTIFF ON MULTIPLE SEPARATE ISSUES:**

   (a) The defendants had a fiduciary duty to care for the plaintiff when holding the funds that the plaintiff had given consideration for.

   (b) The defendants' actions prevented the plaintiff from completion of anything they questioned him not finishing, although not required to be finished, the heirs only were seeking for a reason to withhold money owed.

2) **THE TRIAL COURT ERRED IN GRANTING SUMMARY JUDGMENT TO THE DEFENDANTS BECAUSE THEY HAD COMMITTED FRAUD AND MISCONDUCT.** [what strengthens this argument as a whole, is that the Plaintiff put the Courts, on notice of this repeatedly, creating a necessity for the courts to step in on their own, and they never did… leaving the problem a procedural issue where a pro se litigant with a poverty issue, who's financially incapacitated due to the actions of the Defendants]

   (a) DEFENDANTS CREATED THE PROBLEMS FOR THE PLAINTIFF, ESTOPPING HIM FROM:

      1. Completing the extra he was offering to do.
      2. Using the extras, he was not required to complete as a reason to not pay him on what was complete.
      3. Break and create issues that were the reasons he was not being paid.
      4. Heirs and their counsel knowingly lie to the courts to create a situation that made Plaintiff unable to manage his own situation, leaving him vulnerable. [In other words, had a duty to protect and instead used the good faith and fair

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dealing and honesty of the Plaintiff to sink him by leaving him without his expectations.]

(b) THE DEFENDANTS HAD NO RIGHT TO INTERJECT THE "ASSIGNMENT OF BENEFITS" ASSIGNED TO THE PLAINTIFF PRIOR TO THE DECEDENTS DEATH.

(i) The defendants used their fiduciary duty to cause the fraudulent interception by convincing the mortgage company that the assignment was faulty.

(ii) The rights to the claim were assigned before Joanna's death, meaning never the heirs to inherit.

(iii) Consideration was given in full… therefor where potentially voidable but never void; if the work was not complete [if the court ruled against Plaintiff being able to do the work legally, although due to the unincorporated status of Damascus, AND in pursuant to ORS 701.010, Plaintiff living at the property, Plaintiff was legally able to do the work.

(iv) Defendants used "bad law" … (FOR EXAMPLE):

1. Plaintiff living at the property allowed him to do the work.
2. Damascus being Unincorporated allowed him to do the work.
3. There being an "Assignment of Benefits" made the contract irrelevant, the rights to the claim were irrevocable.

(c) THE DEFENDANTS COMITTED FRAUD.

1. By Replacing the Plaintiffs deposit information with their own.
2. Leading the plaintiff to believe there was no issues.
3. Brought a contractor in to try and entrap Plaintiff by word spin.
4. Lied to the mortgage company

(d) THE DEFENDANTS' ACTIONS HARMED [THE] PLAINTIFF, HIS HELP, AND OTHER TENANTS PROPERTY. THEY DID THIS IN

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ORDER TO CAUSE A DIFFICULT TIME FOR PLAINTIFF TO CONTEST THE CLAIM.

(e) THE TRIAL COURT ERRED AS A MATTER OF LAW IN GRANTING SUMMARY JUDGMENT TO DEFENDANTS. DEFENDANTS COUNSEL JOSEPH MCDONALD OWED PLAINTIFF A DUTY OF PROFESSIONAL CONDUCT, AND TO KEEP THEIR HONESTY AND INTEGRITY WITH THE LAWS.

(f) Joseph McDonald may not have owed a duty to the Plaintiff, but he owed one to the court. And the Court owed a duty to protect the Plaintiff from unfair practices.

(i) Joseph McDonald has a professional duty to, not submit false information whether it has made false by counsel or a client [and he knew or should have known the falsity and yet proceeded to submit false information to the courts].

(ii) The Plaintiff told the court that there was false testimony every step of the way and it was ignored.

DEFENDANTS CAUSED AS MANY ISSUES AS POSSIBLE, FAILED TO SERVE DOCUMENTS TO THE CORRECT ADDRESSES, FAILED TO RETURN ADMISSIONS, FAILED TO BE DIRECT IN WHAT WAS REQUIRED, STACKED THE PROCEDURAL ISSUES IN ORDER TO MAKE THE MOST DIFFICULT AND THEREFOR THE HIGHEST CHANCE OF PROCEDURAL ERROR FOR THE PLAINTIFF STATUTE OF LIMITATIONS. MOREOVER, THE DEFENDANTS HAVE FALSE ANSWERED, AND MISLED THE COURT EVERY SINGLE STEP OF THE WAY, ON NEARLY EVERY ANSWER OR REPLY THEY HAVE GIVEN.

AN APPELLATE COURT USES THE SAME STANDARD AS THE TRIAL COURT WHEN REVIEWING A TRIAL COURT'S DECISION TO GRANT

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SUMMARY JUDGMENT. *PRUDENTIAL PROP. & CAS. INS. CO. V. BOYLAN, 307 N.J. SUPER. 162, 167 (APP. DIV.), CERTIF. DENIED, 154 N.J. 608 (1998).* **IT DECIDES FIRST WHETHER THERE WAS A GENUINE ISSUE OF FACT. IF THERE WASN'T, IT THEN DECIDES WHETHER THE LOWER COURT'S RULING ON THE LAW WAS CORRECT.** *WALKER V. ALT. CHRYSLER PLYMOUTH, 216 N.J. SUPER. 255, 258 (APP. DIV. 1987).*

SUPPORTING BACKGROUND

ABOVE AND BEYOND FACTS

88) Defendants admitted to not being present at any of the time in debate of the property prior to the death of the decedent, and they also verifiably gave false denials on all of the statements in admissions and the two answers. EVERY SINGLE ONE PROVEN ON THE FILING FOR A HEARING IN JANUARY 2022, WITH THEIR OWN COMMUNICATIONS.

89) Moreover, the inability to amend the complaint prevented Plaintiff from the supplemental actions after the original complaint was filed, furthering the difficulty ensnaring the Plaintiffs path out of the hardship he has since been endlessly endured.

90) Additionally, the defendants' actions are completely uncalled-for setting the plaintiff up for harm intentionally, knowingly, maliciously in order to take what was not theirs. Defendants' Statement of Material Facts in Support of Summary Judgment, consist of three sentences over this entire case, and those only deny the

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truths the Plaintiff has validated by other testimony; therefore, Plaintiff declares that there were no genuine issues of fact.

91) THE DEFENDANTS' ACTIONS WERE NOT APPROPRIATE AND THE TRIAL COURT NOT ONLY WOULD BE ALLOWING INJUSTICE TO TAKE PLACE IF THEY LET THE DEFENDANTS GET AWAY WITH THESE ACTIONS; BUT WITH **OREGONS RIGHT TO CURE DOCTRINE**, AND **THE MEND-THE-HOLD DOCTRINE**, THE DEFENDANTS HAVE NO MORE OUTS, MOREOVER, THEY REFUSED TO GIVE ME A CHANCE TO CURE ANY ISSUES IF THEY HAD THEM AT THE TIME, AND THE HEIRS DENYING PLAINTIFF THE OPPORTUNITY THEY FORFITED THAT CHANCE TO OBJECT. THEREFORE, THE DEFENDANTS FRAUDULENTLY INTERCEPTED PLAINTIFFS ASSIGNED PROCEEDS BY FRAUDULENTLY USING THEIR FIDUCIARY POWERS TO GAIN THE OPPORTUNITY TO DO IT [WITH THE BELIEF THAT PLAINTIFFS LACK OF OREGON CONTRACTORS LICENSE GIVING THEM THE RIGHT AND AS SHOWN PREVIOUSLY THAT'S NOT THE CASE].

THE FALSE ARREST CORRUPTED PLAINTIFFS CASE NO 21CV02575

PLAINTIFF FINALLY HAD HIS CASE SET FOR TRIAL… AND HAD HELP [SET UP] FOR MARCH 7TH 2022 TO ASSIST HIM IN THIS LEGAL MATTER. ONLY TO BE FALSE ARRESTED ON MARCH 6TH COSTING HIM ALL FAITH WHILE HE REMAINED

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INCARCERATED WRONGFULLY FOR MONTHS MAKING THE PRETRIAL REQUIREMENTS IN FIXING THIS CLAIM AND GETTING EVERYTHING CORRECTED [BEFORE CATCHING COVID IN JAIL CAUSING TRIAL TO BE PUSHED BACK FURTHER AND FURTHER BEFORE BEING ACQUITTED] AND BEING FORCED TO MISS TRIAL AND ALL OPPORTUNITY OF WHAT IS OWED BEFORE THE STATUTE OF LIMITATIONS CAUSED LIMITATIONS OF THOSE POSSIBILITIES.

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NOTE: CASE NO 21CV02575 WAS / HAS BEEN INTERUPTED BY THE FALSE ARREST BUT THE DECISION HAS BEEN OBJECTED AND A NEW TRIAL HAS BEEN REQUESTED, AND IF NEED BE, AN APPEAL WILL BE PETITIONED FOR. SO THE OUTCOME IS UNKNOWN ON THE THIS PORTION OF THIS FALSE ARREST CLAIM.

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ANY QUESTIONS PLEASE CONTACT

TYLER ALLEN LOFALL

VIA EMAIL

TYLERALOFALL@GMAIL.COM

OR

(386) 262-3322

THANK YOU

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"IN EXCERCISING PROSECUTORIAL DISCRETION, A DISTRICT ATTORNEY'S CORE FUNCTION IS TO ENSURE THAT THE GUILTY ARE PROSECUTED.

"[the prosecutor] is in a peculiar and very definite sense the servant of the law, twofold aim of which is that guilt shall not escape **OR INNOCENCE SUFFER**."

PEOPLE V. SUPERIOR COURT (GREER), (1977) 19 CAL 3D 255. 266.

A prosecutor has a duty to be fair to criminal defendants, ***

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VERIFIED COMPLAINT

Tyler A Lofall, tyleralofall@gmail.com 1-(386) 262-3322

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THE CIRCUIT COURT IN THE STATE OF OREGON

FOR THE COUNTY OF CLACKAMAS

TYLER ALLEN LOFALL Plaintiff, vs. COUNTY OF CLACKAMAS, DA REBECCA PORTLOCK, WEST LINN POLICE DEPARTMENT, CLACKAMAS COUNTY POLICE DEPARTMENT, WEST LINN POLICE OFFICER DANA GUNNERSON, WEST LINN POLICE OFFICER CAITLIN BLYTH, CLACKAMAS COUNTY POLICE OFFICE #1, CLACKAMAS COUNTY POLICE OFFICER #2 Defendant, TEAGUE BOND & ZAC BOND Heirs of Joanna Lee Bozian,	Case No.: 22CV39627 [VERIFIED] COMPLAINT MONEY DAMAGES PUNATIVE DAMAGES A False Arrest Interfered Plaintiffs Contractual Agreement / Economic Expectation. When defendants violated Plaintiffs Constitutional Rights 42 USC 1983

COMPLAINT

INCLUDING CLAIM ISSUES FROM 21CV02575 (not yet completed)

92) COME NOW, I, Tyler Allen Lofall, hereon Plaintiff/Petitioner, petitions the court in this matter on my own behalf in a pro se capacity and submit this Complaint for damages and injunctive relief. Plaintiff alleges and states as follows:

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PARTIES

93) Plaintiff is a citizen of the United States of America, and a resident of Clackamas County, in the State of Oregon.

94) Defendant, County of Clackamas is a municipal corporation existing under and by the virtue of the laws of the State of Oregon.

95) Defendant District Attorney Rebecca Portlock was, at all material times, a member of the Clackamas County District Attorney's Office, and is a resident of Clackamas County.

96) Defendant, West Linn Police Department, is a duly constituted municipal police agency that was created by and functions under the control of the County of Clackamas.

97) Defendant, Clackamas County Police Department, is a duly constituted municipal police agency that was created by and functions under the control of the County of Clackamas.

98) Defendant Dana Gunnerson was, at all material times, a member of the West Linn Police Department.

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99) Caitlin Blyth was, at all material times, a member of the West Linn Police Department.

100) Defendants John Does [two] Unnamed Clackamas County Police officers, as far as known at all material times, were members of the Clackamas County Police Department.

101) Defendant, Clackamas County jail, is a duly constituted municipal police agency that was created by and functions under the control of the County of Clackamas

102) HEIRS FROM UNDERWRITTEN CASE 21CV02575

103) Heirs of Joanna Lee Bozian, the "Decedent" and owner of 22008 SE Edward Dr, Damascus 97089, here on known as the "property"

104) Heir Zac Bond, Son-in-law of the Decedent, and at all material times lived in Eugene.

105) Heir Teague Bond, Daughter of the Decedent, and at all material times lived in Eugene, and was also the personal representative.

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JURISDICTION AND VENUE

106) This action arises under the United States Constitution, particularly under the provisions of the Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments to the United States Constitution, as well as Uniform Commercial Code Article 9 and under the federal law, particularly 42 U.S.C §1983, which provides an individual the right to sue state government employees and others acting "under color of state law" for civil rights violations.

107) This court has subject matter jurisdiction under 28 U.S.C. §§1331 1343.

108) This Court has jurisdiction over claims seeking declaratory and injunctive relief pursuant to 28 U.S.C. §2201 and 2202, and Rules 57 and 65 of the Federal Rules of Civil Procedure.

109) Plaintiff will be asking for economic and non-economic damages. including nominal and compensatory damages, consequential, treble, and punitive if so available, against all defendants.

110) Plaintiff's claim for attorneys' fees and cost for its federal claims is predicated upon 42 U.S.C. §1988, which authorizes the award of attorneys' fees and costs to prevailing plaintiffs in actions brought pursuant to 42 U.S.C §1983

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111) This Court has supplemental jurisdiction over Plaintiffs state law claims pursuant to 28 U.S.C §1367 as they arise from the same cause or controversy as Plaintiff's claim here due to the false arrest [potentially spoiled the profits to a contract that Plaintiff was entitled to], with the original case [with the heirs] in 21CV02575, under federal law.

112) §28.3-2 Jurisdiction, Venue, and Applicable Law The federal district courts have exclusive jurisdiction of civil actions based on claims arising under the Federal Tort Claims Act (FTCA). 28 USC §1346(b). There is no minimum or maximum jurisdictional amount.

113) An FTCA action must be prosecuted in the district in which the plaintiff resides, or the tortious event occurred. 28 USC §1402(b).

114) The law of the place where the wrongful act occurs governs the substantive elements of a claim for relief under the FTCA, including choice-of-law rules. 28 USC §1346(b); Richards v. U.S., 369 US 1, 10, 82 S Ct 585, 7 L Ed2d 492 (1962) (tort claim determined by law of state where negligence occurred, *** The applicable standard of care, measure of damages, determination of causation, foreseeability, and so on, are all controlled by the law of the state where the alleged tortious act, error, or omission occurred. See Washington v. U.S., 769 F2d 1436, 1437–1438 (9th Cir 1985).

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115) The FTCA is exclusive regarding all suits against the United States sounding in tort. If a tort suit does not lie under the FTCA, the action is altogether barred. However, neither the federal statutes nor the Constitution create a cause of action under the FTCA. Thus, plaintiffs do not state a claim within the jurisdiction of the FTCA unless they point to an actionable tort duty recognized under the applicable state law. FDIC v. Meyer, 510 US 471, 477–478, 114 S Ct 996, 127 L Ed2d 308 (1994). But see §28.3-14 for a discussion of Bivens actions.

116) §28.3-9(b) Intentional-Tort Exception Although the United States has generally retained its immunity from liability for claims arising out of intentional torts, 28 USC §2680(h), Congress has expressly waived that immunity in certain circumstances. For example, the United States may be held liable for claims arising out of "assault, battery, false imprisonment, false arrest, abuse of process or malicious prosecution" that is occasioned by an investigative or law enforcement officer (statutorily defined as "any officer of the United States who is empowered by law to execute searches, to seize evidence or to make arrest for violations of Federal law"). 28 USC §2680(h); see Annot, Construction and Application of Federal Tort Claims Act Provision (28 USCS §2680(h)) Excepting from Coverage Claims Arising out of False Imprisonment, False Arrest, Malicious Prosecution, or Abuse of Process, 152 ALR FED 605 (1999 & Cumulative Supp 2005).

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INTRODUCTION

SHORT SUMMARY OF 21CV02575

117) Civil Case 21CV02575 having unrepairable damages raising this Title 42 U.S.C. Section 1983/1985 civil rights claim of Equity when the Plaintiffs Constitutional rights were violated causing an interference in Plaintiffs U.C.C. Article 9 Civil Claim he been awaiting payment [when for a second time, Plaintiff had his expectations wrongfully interjected].

118) Plaintiff brings this action against the Defendants in response to the damages stemming with West Linn Police Officers [Dana Gunnerson, and Catlin Blyth] by their fraudulent, intentional, manipulation of evidence when both officers conspired together in order to "tweak" the discovery/evidence, mutating the perceived image of the Plaintiff from victim to Defendant.

119) Heirs previous interception of Plaintiffs "Assignment of Benefits" in claim 21CV02575 Filed January 25th 2021, already crippling the livelihood of the Plaintiff by [fraudulently using their fiduciary powers to restrain] completely breaking all means for which the Plaintiff could defend his self, by leveraging a situation created for the benefit of the heirs, to illegally negative leverage the

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Plaintiff in a way that already violating his rights, left him hurt but still within means of a usable claim.

120) Ironically, Plaintiff was left to struggle after the District Attorney's office had turned down assisting an individual [assisting Plaintiff] who was just blatantly turned down and overlooked, when the District Attorney's Office told Plaintiff to notify local law enforcement, [and Plaintiff did in fact notified Clackamas County Police Department] who told Plaintiff it was a "Civil Matter".

121) There was fraudulent theft and deception by a fiduciary against a [financially] vulnerable person [Plaintiff] and that person had interjected his self in that vulnerable position protecting the fiduciaries mother, and while protecting the mother, personally, financially, and in good faith gave 100% consideration, and had an Assignment of Benefits for a $111,943.56 claim that was taken by the heirs convincing the mortgage company that the plaintiff fraudulently created said AOB (Assignment of Benefits), committed fraud upon the court, rendering the Plaintiff homeless, hungry, and cold, and then dancing around ORCP when the Plaintiff was late on turning a filing that was never served to the Plaintiff, and breaking Plaintiffs property, including Plaintiffs computer in order to create hurdles that are a difficult path to complete the obstacles required to file into the case as a pro se litigant due to the rules of civil procedure.

122) The only thing the Heirs could have inherited was the Fiduciary Duty the Decedent had by originally having the payment for work already completed that

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was assigned to the Plaintiff. The Defendants wrongfully taking rights to an Irrevocable claim right, assigned, completed, and moreover not the decedents at the time of death so not the heirs to inherit.

123) The actions by the Defendants violated the Plaintiffs constitutional rights, The DA ignored the premeditated attack, only long enough to capture liability on said [brief attached claim (21CV02575)] when the two officers decided to create their own laws. The Liability of the Assignment that was fraudulently taken, being an active claim that Plaintiff had the benefits moved out of reach when Plaintiff, for only defending his property [an action legal by law] was falsely arrested, in order for the defendants to circumvent tenant and criminal law.

124) As a consequence of false imprisonment, Plaintiff has been the victim of irreparable damage [again] to his claim rights with Clackamas County Civil Claim 21CV02575, therefore Plaintiff hereby seeks reconciliation for loss of value in the rights to the fruits of a contract that was completed entitling Plaintiff to an $111,943.56 assignment.

PLAINTIFF ADDITIONALLY ALLEGES THE FOLLOWING CAUSES OF ACTIONS OF THE DEFENDANTS CAUSED FURTHER HARM BY EXPOSING THE PLAINTIFF TO THE FOLLOWING:

---

(1) VIOLATIONS OF 42 U.S.C. 1983: UNLAWFUL DETENTION AND CONFINEMENT,

(2) VIOLATIONS OF 42 U.S.C. 1983: CONSPIRACY,

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(3) VIOLATIONS OF 42 U.S.C. 1983: REFUSING OR NEGLECTING TO PREVENT,

(4) MALICIOUS PROSECUTION,

(5) DENIAL OF NECESSARY AND ADEQUATE MEDICAL CARE AND TREATMENT,

(6) FALSE IMPRISONMENT,

(7) INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS, (HEIRS)

(8) TORTIOUS INFLICTION OF EMOTIONAL DISTRESS,

(9) TORTIOUS INFLICTION OF EMOTIONAL DISTRESS, (HEIRS)

(10) CONVERSION,

(11) BREACH OF FIDUCIARY DUTY (HEIRS),

(12) BREACH OF FIDUCIARY DUTY

(13) UNJUST ENRICHMENT, (HEIRS)

(14) BREACH OF CONTRACT/ASSIGNMENT. (HEIRS)

125) Additionally, Plaintiff having his rights violated by a series of actions where the defendants had a duty to protect Plaintiff from either their actions or from the actions of the other defendants.

126) The United States through a separation of powers, has a duty to self regulates government misconduct and, in this matter, failed to do so between the local executive and judicial branches of Government employees; and the Defendants breached their duty to protect by trusting, without actually investigating the actual actions between one and another. as an oversite of "checks and balances" of one party over the other in the matters contained within. Plaintiff believes, and therefore alleges that these actions were actions the defendants acted upon out of habit.

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127) As a direct result, the Plaintiff has been exposed to Coercion, Failure to offer Equal Protection of Rights, Lack of Due Diligence, Unnecessary Extended Imprisonment, Loss of Property, Financial Burdens, Reputation Degression, Unrecoverable Time Loss, Mental and Emotional Anguish, Physical Health Depreciation, Loss of Confidence in the Government, PTSD and Fear Caused By Concerns of Being Arrested, Damage to and the Deciding Factor in the end of a Five Year Romantic Relationship, & worst of all loss of spirit and motivation for the joys of life.

128) These duties to defend are owed by both the County of Clackamas and the Clackamas County Courts, and all the employees they employ, and that duty has been failed.

129) Where the County of Clackamas, and the Clackamas County Courts had the duty to defend, and/or prosecute with respect, fairly, equally, and treat Plaintiff as though innocent until proven guilty in a court of law, defendants had disregarded this duty by choice or negligence.

130) Defendants, by twisting the truths intentionally changed perceived to the viewer[reader] by selectively misleading the evidence brought out into the existence of the case.

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131) With use of word spin, and selectively exposing facts, the Defendants did not share exculpatory evidence in favor of the Plaintiff, even after Plaintiff requested it multiple times.

132) In order to get the results desired without regard to law, Defendants knowingly, and intentionally picked in order to manipulate the outcome of the case[report]. Their actions are not only unethical and illegal, but it is also a good indication (or even) [proof] that the defendants' actions were bias and partial and not an accident; and the defendants acted with unfair practices, as well and violated Plaintiffs Equal Rights Doctrine of the Sixth and Fourteenth Amendment.

133) Multiple times it has been brought to the attention of the courts that, that Officers of the court have done the following:

134) Massiel Galla is claiming that she has been told and implied by the District Attorney's Office, as well as the Victim Advocate that she has assigned to her multiple times leading her to believe that her children will be more freely given to her, if she assists in the further in the prosecution of the Plaintiff.

135) This has happened before and after the Dismissal of Plaintiffs case, after he notified the District Attorney that he planned to file a lawsuit.

136) The issue at hand is that the information being leveraged is false, and Massiel declares it as false.

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137) Communication was forced to stop between Plaintiff and his Girlfriend Massiel Galla, and in doing so blocked vital information, that only a breach of a no contact order was able to reveal the dishonest prosecution against the Plaintiff. SEE TRANSCRIPT FROM JAIL COMMUNICATIONS.

138) Those negative leverage tactics are consistent in the actions the Plaintiff witnessed in case number 22CN10908 where Plaintiff defended himself pro se.

139) None of Plaintiffs requested discovery was honored,

140) Trials were moved without conferring based on the allegations that he had covid when he was tested and cleared.

141) Exculpatory evidence was withheld from a pro se defendant leaving him unable to do specific things, a free man would be able to do,

142) A clear display of unfair tactics and prosecutorial misconduct.

143) Arresting Police Officers Alleging facts based on sub truths, having witnesses stretch or "create" instances so that building blocks of the case fill in holes in the law that are not true is unfair, and dishonest yet also prosecutorial misconduct as well, and it shall be proven.

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144) Moreover, even under the most fair light the District Attorney can be seen under, with a duty to reveal both evidence supporting the innocence or guilt of a citizen, using the frustrations of being incarcerated to further force the potential innocent inmate into taking a charge when innocent but the person lacks the will to contest a bogus charge exposes innocent people to take charges due to these tactics and that is also a direct contradiction to what our court prosecution is meant to stand up for.

145) When Plaintiff did not take a plea deal offered by the District Attorney admitting guilt to the Harassment, the DA further increased Plaintiffs sentence as a punishment on the no contact accounts, he was guilty for in regard to violating a no contact order, that was court imposed on the case Plaintiff was wrongfully arrested on.

146) Plaintiff was charged with (four) accounts of contempt of court for violating a no contact order.

147) Plaintiff was then sentenced to (five) 10-day sanctions (50 days instead of 40 (10 days each) therefore being over sentenced for said charges and missed 4th of July due to the clerical error.

148) The alleged victim filed a motion for waiver of no contact, at the hearing, in open court, told the DA and Judge she was going to marry Plaintiff, and did not want the no contact order at all.

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149) Additionally, allegations recorded in the police reports on allegations by the "Victim" said to be about the Plaintiff, her herself in open court reported, these allegations taken by the West Linn Police Officers, were false, or twisted to change the believed intent to the reader.

150) Plaintiff Alleged the same thing in multiple declarations, and (two) Motions for Order to Show Cause.

151) Moreover, the two police reports displayed a clear and convincing record of "no fear", "no history", "no harm" and no other actual witnesses besides the "victim" and the Plaintiff, leaving no reason to so strongly prosecute the Plaintiff, yet they did.

152) Additionally, neither Show Cause Order brought the Officers for the Order to Show Cause in four months, yet the Officers reports not only were twisted in skewed facts, but they matched. Massiel Galla states that the officers seemed happy to find a way to arrest the Plaintiff on false pretenses.

153) Prior to the arrest of the Plaintiff on March 6th, there were two prior incidences that clearly showed mental health issues of the "victim", and evidence that the Plaintiff was not the aggressor, therefore there was insufficient elements to charge the Plaintiff [Defendant at the time] and WAS the rational one in the situation.

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154) On the 4th of March West Linn Police Department was sent to the same address due to Macy bashing out all the basement windows, taking a hose and spraying Plaintiffs property with water inside the house, and pouring flour all over his property that she intentionally purchased for this event, due to her being upset. On This day, it was Plaintiff that was the one who called 911, and told the Police that Massiel Galla needed the hospital, and he knew her very well for they had a 5-year relationship, and something was wrong.

155) On the 5th of March Officer Goode of West Linn Police department took five gallons of gas from the alleged victim due to her threats to burn down the house.

156) The Arresting Officers were privy to all of this information, and not only had access to it, but had actual knowledge of the facts. (SUBPOENA MASSIEL GALLA)

157) The underlying issue at hand in this matter roots itself in both the local executive and judicial branches of government; for they both have a duty to protect the interest of the public in both the reputation, property, liberty, and trust.

158) That includes their "Checks and Balances", and officers that make their own law and series of events such as in this instance here. Plaintiff has full intention on proving the West Linn Police Officers used their poor judgement to leave out

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events such as "broken windows", and the fact that Plaintiff only was stopping a hose, not Offensive in nature at all.

159) Yet The Prosecution continually left out, and failed to reveal Plaintiffs exculpatory evidence, and intentionally made a "mistake" to go off topic on Plaintiff's[defendant's] Demure furthering additional time that the Plaintiff[defendant] had an accusatory instrument, not definite and certain, as the constitution and statute both support as a necessity to detain someone charged with a crime.

160) Plaintiff paid for the remodel out of his earned income, and 401k, in order to correct the potential damages to the house due to partial completion of repairs going into winter.

161) Plaintiff also had to wait to collect his personal income until the final payment, due to Joanna's breach of contract, to complete the house, and did so in good faith for the benefit of the decedent's home, inherited by the Heirs after her death.

162) The Assignment put the Plaintiff in the shoes of Joanna Lee Bozian the second it was signed. At that moment it was no longer was Joanna's claim's proceeds, even if she was alive.

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THE CONTRACT & ASSIGNMENT OF BENEFITS.

SEE EXHIBIT 1 – 4 [ON CLAIM 21CV02575] FOR MORE INFO

163) Plaintiff has spent 18+ months upfront and in good faith between December 10th, 2018, and the time Plaintiff Left in February 2021, only to stop working when Plaintiff's payments were wrongfully spent when The Decedent spent $23,000 and did not have her side of the obligation, and she was damaging Plaintiffs work repeatedly.

164) Two side agreements were created between Plaintiff and Joanna to correct the issue. SEE EXHIBIT 21

165) She was late or short every single time she made a payment, and she drug out what was supposed to be 4-5 lump payments, into several dozen, every single one was short. SEE EXHIBIT 23.

166) Joanna wasted Plaintiffs time and money with both agreements, and Plaintiff figured out that Joanna's complete disregard for his time.

167) Plaintiff spent an enormous amount of time helping Joanna get everything under control at her house. He did far more than just helped her with a claim.

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168) Joanna was a hoarder, and she had an entire house and barn overflowing with items that she acquired from ex squatters/ tenants, and carloads of good will items on a daily basis.

169) Some of the vagabond tenants, still were at the house when Plaintiff got to the house to start a project remodeling the basement at the property for the Decedent in July 2017.

170) Additionally, Joanna owed Plaintiff $11,000 at the time of the fire.

171) The Plaintiff was deprived his payments from the Decedent the entire time he was at the Property.

172) Plaintiffs had help quit for the complete lack of respect given by Joanna and people's personal space, and respect of time, and now Plaintiff was having his help lose faith in Joanna's ability to pay.

173) Sandra Casey, a licensed field insurance adjuster, and a certified home inspector, refused to finish the Xactimate until an AOB was signed and is owed 10% the difference between the first and second claim.

174) Angala Miles, witness to the signing of the original contract and helped for a significant amount of time to get the property messes under control and help the Decedent with picking some ideas for her additions to the house. Angela came to

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the property from Washington State, for three separate work trips, and is owed $5,000

175) Ron Phillips is owed $3,000 ($5,000 but Plaintiff was able to pay him out of his 401k), Ron came twice, and then when Plaintiffs truck broke hauling one of his overloaded trailers to accommodate the demands of the Heirs got Plaintiffs final Load. Ron Came from Kitsap County Washington, and he was general contracting a project in 2017 in Beaverton when Plaintiff was asked to come to the Property to give advice on a potential addition to the Decedents unfinished basement. Ron ended up in the hospital and homeless due to not being paid.

176) Jeremy Toliver. is owed $2,000 and left twice and ended up in the hospital and homeless when he was not paid.

177) Plaintiff emptied his 401K to finish the project.

178) Plaintiff did this ONLY because he had an Assignment of Benefits, and Assurant was put on notice.

179) Despite the Anti-Assignment Clause in the Insurance contract with the Insurer, Assurant let plaintiff know that that clause was only for pre casualty assignments, and a post loss Assignment was acceptable.

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180) Additionally on the Assignment Claim, (case no: 21CV02575) both the District Attorney's Office and Clackamas County Courts ignored blatantly obvious, malicious, and repetitive fraud in the submitted filings of the Heirs (Defendants/oppositions) pleadings, and responses.

181) Plaintiff contacted the District Attorney seeking aid in the crimes against him.

182) District Attorneys - last email communication was on or about *Jan 24th was received at 4:18pm* notifying Plaintiff to let local law enforcement know.

183) Plaintiff sent Exhibit 21 to Clackamas County Sheriff's Office.

184) Plaintiff also filed a claim form online requesting help from Clackamas County Law Enforcement.

185) No help was given.

186) The Heirs destroyed Plaintiffs property, secretly denied the probate claim in order to start the time clock Plaintiff had to file the creditor the Heirs had no reason to have any part of but illegally intercepted the claim for the assignment.

187) Then used fraudulent actions and prosecutorial misconduct to illegally evicted him, stole $111,943.56 dollar assignment, and lead him to believe he was

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going to be arrested even though he had an Automatic Stay as a matter of law and evicted only him so that it could happen as fast as possible leaving Plaintiff defenseless against the Heirs who used his own proceeds to hire Joseph McDonald to keep Plaintiffs money from him for good.

188) Plaintiff was victim of a series of malicious misconduct including bad faith, fraud and deceit and then leveraged with extortion, so that he was broke homeless, and defenseless when he was trying to protect his claim rights.

189) Much of the evidence herein was extracted directly from the original conversations of the Heirs their selves. And therefore, should be simple to see the truths in the matter. SEE EXHIBIT 6, & 21.

190) Due to the extreme amount of time that the insurance company had already taken, Plaintiff had a relationship with the Heirs, and it was said by both the Heirs, that they were not going to interfere with the Plaintiffs Agreement.

191) The Heirs continued to tell the plaintiff what he wanted to hear to keep plaintiff from opposing the Heirs until they fully had the check, and the house was inspected by the mortgage company.

192) On November 30th, 2020, the House final inspection was completed, and the funds were to be released within a day or so.

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193) On December 1st, the Heirs told the Plaintiff that they would give him $7,000.00 to walk

194) The assignment transferred the rights to the proceeds the Plaintiffs the moment it was signed.

195) The Heirs fraudulent actions lead Plaintiff to believe they were going to honor this because they were not around, and they had not been to the Decedents house in 20 years,

196) To promptly and respectively close out and remove Plaintiffs property from the descendant's house, that the Heirs were going to inherit, Plaintiff gave the Heirs a packet for the mortgage co, and since they are partial owners of the house, to release the funds, JP Morgan needed to indorse the final check upon completion.

197) Heirs conveniently left out Plaintiffs bank information and replaced it with their own.

198) Heirs then told the Mortgage company, while under their fiduciary duty privileges to convince the Mortgage company that fraud was used to gain access to the insurance proceeds, and the assignment was fraudulent.

199) The entire time between the time the Plaintiff met the Heirs, and the time the check was released, the alleged Plaintiff was going to have no issues

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with them trying to intercept the check when it came time to collect it, from the Insurance co/Mortgage co.

200) Plaintiffs relied on, and earned the payment, but it never came, and he believed he was going have no interference.

201) Both the County and the Court are/were fully aware of the false testimony given in opposition to the Plaintiffs complaint, in Civil Claim (Case no: 21CV02575) in the Heirs Answer, motions, and declarations; yet the court intentionally ignored the Heirs faulty actions.

202) The Heirs made false allegations during an eviction show cause hearing, stating the Plaintiff was a guest in the house, allowing the courts to evict the Plaintiff unpaid in three days.

203) Due to fraud, and criminal action from the Heirs, and attorney misconduct, further investigation should have been owed.

204) Through acts of fraudulent misrepresentation, fraud upon the court, false testimony, falsely denying accusations, attorney misconduct, destruction of personal property, fraudulent claims to notice, theft of services, premeditated tortious actions including slander, deceit, and extortion the Heirs and their counsel Joseph McDonald (Defendants in case 21CV02575) have intentionally, willfully, and recklessly stollen Plaintiffs Assignment of Benefits Claim Proceeds.

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205) The official judicial complaint Plaintiff submitted against the Heirs with the ABA due to actions in December 2021, was just denied the week of trial in Aug 2022.

206) Plaintiff has reached out to over a one hundred Law Firms.

207) Plaintiff has exhausted every avenue to find help for said claim.

208) Plaintiff completed his side of the agreement in good faith yet was responded by the Heirs putting him in a horrible position, where their goal from a time that they were giving the Plaintiff false information in order to have personal gains proven by the secret slander to the Mortgage company a month before the check came,

209) Intentionally leaving the Plaintiff not to be able to defend his self.

210) Plaintiff openly allowed access to the claim, including handing over documents, and bank statements where the first insurance check was deposited showing the transactions to keep the Heirs from concerns of fraudulent activity.

211) Starting when being evicted with three-day notice, during the heart of covid, while being extorted so the defendants could fraudulently use their fiduciary role to leverage the unexpecting Plaintiffs in his vulnerability, leaving the Plaintiffs

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good faith efforts to trust the heirs, created an unfair advantage when the premeditated assault all stacked up to hit the Plaintiff at once. SEE EXHIBIT 21.

212) Right before the interception of the Assignment and eviction, the Defendants pitched all the Plaintiffs property into the yard, broke the stove, heater, flooded the basement, trashed Plaintiffs work, computer to write contest the denial of the estate claim, and stopped a $64,523.71 check from clearing into the Plaintiffs bank by calling Chase Bank, on a claim number Plaintiff had given them and used their fiduciary powers to convince them that Plaintiff fraudulently created the Assignment. SEE EXHIBIT 20

213) Then posted Plaintiffs eviction notice so it would not be seen, leaving Plaintiff unpaid, and then the Heirs pulled an old excel sheet not intended for their invoice, sent it to probate unbeknown to Plaintiff, for the purpose of starting the timeclock for a creditor claim and denied it, starting the time clock for the Plaintiffs, deadline for payment rights.

For the law and courts to allow this sort of actions is stating they knowingly and purposefully allow the rights of the people going out to the highest bidder, and who is in the right is nonrelevant, and that is unconstitutional, there is no difference than someone breaking into someone's house and stealing over a $100,000 and them having no repercussions!

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214) By simply assigning counsel in cases mentioned herein, procedural law wouldn't be determined by legal ability of a Pro se litigant who was forced into

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representing his/herself, with no legal experience and then have everything stripped from their person if not successful in procedure that takes lawyers 10 years with education, and internship that they can ask teachers or mentors, with all the needed tools, where that pro se litigant has nothing and is up against a time clock.

215) The Heirs broke the law, and no justice has been rendered.

CIVIL SUIT FILED JAN 25TH 2021 CLAIM NUMBER 21CV02575

216) On the 25th of January, a complaint was filed by the Plaintiff after the heirs of the property owner, Joanna Lee Bozian, who died while the Assignment was in process of being closed out by Assurant, and at that time, the insurance checks still needed to be endorsed by J.P. Morgan due to them still holding the title.

SEVERAL MONTHS EARLIER IN OCTOBER 2020 TO DECEMBER 2020

217) The decedent's heirs then made claim to the mortgage company, the entity in possession of Plaintiffs Assigned Proceeds that the Plaintiff had forged or fraudulently processed the Assignment and did not tell Plaintiff.

218) Plaintiff had ordered the funds from Assurant to be sent directly over from Assurant, the insurance company, and those funds were waiting for a final inspection that is standard when a mortgage company holds value in a property under repairs from an insurance claim.

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219) Plaintiff needed the homeowner signature in order to schedule the final inspection from JP Morgan, and the Heirs lived two hours away and needed to fill out some paperwork for that process to proceed; so, Plaintiff sent the documents he had with the Heirs so the documents could get sent together to their Atlanta branch that deals with casualty loss claims.

220) Plaintiff had his bank information included in those papers, and the heirs aware of this fact, told plaintiff that they would submit the documents.

221) The Heirs left out Plaintiffs bank information and inserted theirs in place of Plaintiffs.

222) Then the Heirs used their fiduciary position, to put JP Morgan on notice not to communicate with the Plaintiff, because of false accusations of their being falsely claimed rights with the Assignment.

223) The heirs [Zac Bond, and Teague Bond] and their counsel [Joseph McDonald] used their fiduciary duty to fraudulently intercept Plaintiffs assignment.

224) The Assignment was assigned, obligations complete, witnessed by multiple credible witnesses [Angala Miles, and Wyatt Bender] well in advance to their mother's death.

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225) The Heirs shared no witness to with their mother and the Heirs had not seen their mother or been to their childhood home in 20 years.

226) The Mortgage company, set up an appointment with JP Morgan to inspect the work done on the house, and one was set for the 30th of November 2020.

227) Plaintiff called for a status update prior to the final inspection,

228) The lady just set the phone down on the desk and called Teague Bond on another phone; Plaintiff could hear the conversation faintly.

229) Plaintiff had never had to have any approval in the past before speaking with the Mortgage Co, The Assignment of Benefits holds a lot of power, yet with the death of Joanna, the one thing that can prevent communications from a mortgage company and assignee [and it was done] Teague Bond maliciously and intentionally told JP Morgan that Plaintiff fraudulently created the Assignment, denying Plaintiff's request to speak to the mortgage company, and Plaintiff was told he needed a court order in order for them to communicate to him.

230) There was not time before the inspection, and Plaintiff spoke to Zac Bond.

231) Zac Bond told Plaintiff he just wanted to make sure it passed inspection, and there "wouldn't be a problem to release the funds". SEE EXHIBIT 6.

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232) On November 30th, 2020, Plaintiff met the mortgage company for the final inspection, and it passed all areas that were damaged by the fire and covered on the Plaintiffs Scope of Loss done in Xactimate.

233) This is the same program that Assurant uses for their Insurance Adjusters, and it was submitted in June along with the Plaintiffs Assignment of Benefits that the Plaintiff had with Joanna, the homeowner and mother to Teague Bond.

234) Plaintiff had a Licensed Insurance Adjuster, and field home appraiser, Sandra Casey work with him to turn in the paperwork that was then approved by Assurant.

235) Sandra Casey came to the property for several days in August 2019, and worked with Plaintiff again in Dec 2019, and then Plaintiff worked with her remotely and completed the estimate/proposal side of the supplement. Although it was delayed until June 2020 due to Joanna over spending the previous check, there was doubt in Joanna's honesty, by this time Plaintiff had discovered that Joanna had ripped off every contractor that had worked at the property over the last decade. In order to secure her payment Sandra, refused to finish, and Plaintiff agreed until Joanna signed an Assignment of Benefits allowing the payment of the claim to be paid directly from Assurant/JP Morgan to the Plaintiff, and prevent further delays where Joanna isn't have any control[1] in any more miss appropriation

[1] Joanna had signed up for literally a half dozen auto orders of Penis Enlargement Pills, Viagra, Face Creams, Sex Libido, over $10,000 in dental, and hearing aid kit that cost thousands of dollars that

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of funds[2] additionally Sandra who's payment was a year past when it was initially expected. SEE EXHIBIT 7, and EXHIBIT 7B Affidavit and Declaration of Sandra Casey.

236) The Original field adjuster Plaintiff met at the property Dec 15th, 2018, had an initial payment of $38,385.97 before the request for supplement sent by Plaintiff.

237) After Plaintiff sent his proposal (much of which Plaintiff did in good faith, at his own risk, such as the roof was approved for a patch and Plaintiffs experience[3] led him to believe the Insurance Company would pay for a replacement of the entire roof with proper documentation. In order for the home to not remain vulnerable to the elements for extended periods of time until the house Plaintiff took and used that got a $23,000 roof completely paid for and upgraded to a

she left out to get stollen by one of her sketchy guests, and when her account when her checking account ran over repeatedly, her checking account drained the money from the Claim account, taking Plaintiffs money to finish the project he was there to complete, causing the contract to come to a stand-still, exposing the house to extreme vulnerabilities, and leaving Plaintiff unpaid and in a poor position.

[2] joanna's misappropriation of the first check cost the plaintiff a year where he wasn't really in position to leave, and he had seen the evidence and heard the horror stories of every single contractor to set foot on the property being screwed and left unpaid. Joanna spent $23,000 and slowly tried to pay it back, these payments were short and late on every single payment (over 50 PAYMENTS ALL delayed see exhibit 27) and initially plaintiff still had faith in joanna paying on her own, and plaintiff drew from his own 401k and personal accounts in-order to keep working but as time went on plaintiff had less and less faith in the decedent paying what she agreed to do.

[3] If the roof wasn't paid for in full by the insurance company with an assignment of benefits that's a cost the plaintiff takes the loss on. Without the assignment of benefits, that's a cost the plaintiff could have come back and charge the homeowner, and even put a lien on the property over.

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$30,000+ lifetime, with ice and water shield underlayment in hopes that the original roof would be covered in the end.[4] Assurant approved Plaintiffs supplement, and Plaintiff paid and completed he work for $111,943.56.

238) Plaintiff was assigned those proceeds and had personally paid and covered all of the costs for the benefit of Joanna, and those benefits were then inherited by the Heirs. The check was moved for clearing on the December 1st-2nd 2020.

THE HEIRS STEAL PLAINTIFFS' ASSIGNMENT OF BENEFITS AND THEN BREAK HIM DOWN SO HE CAN'T DEFEND HIS SELF

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239) After the Mortgage company had notified Teague Bond that the check was on the way to their bank account, Zac Bond wrote Plaintiff an email stating they would only give him $7,000, or he would get nothing. SEE EXHIBIT 6.

240) Plaintiff was entitled the proceeds the second it was signed, and no longer was Joanna Lee Bocian's the owner of said claim proceeds, not even if she was alive, therefore it was not the Heirs to inherit.

[4] insurance companies pay for what was on the house not what was replaced on it in the end. So that if a 3tab cheap roof was on the house that's what would be paid for, so if you wanted to put a lifetime shingle on a house, typically the homeowner would have to pay the ***DIFFERENCE BETWEEN 3TAB AND THE LIFETIME SHINGLE, PLUS THE ADDITIONAL LABORS.***

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§6.1-5 SURVIVAL OF ACTION

§6.1-5(A) IN GENERAL ALL CAUSES OF ACTION SURVIVE THE DECEDENT'S DEATH AND PASS TO THE PERSONAL REPRESENTATIVE OR AGAINST THE PERSONAL REPRESENTATIVE.

ORS 115.305, 30.075; ORCP 4 M, 34 D.

"AN ACTION AGAINST A DECEDENT COMMENCED BEFORE AND PENDING ON THE DATE OF DEATH PRESENTATION OF A CLAIM AGAINST THE ESTATE." ORS 115.315. HOWEVER, ORCP 34 B (2) REQUIRES THAT A CLAIMANT MOVE THE COURT TO SUBSTITUTE THE PERSONAL REPRESENTATIVE FOR THE DECEDENT UPON RECEIPT OF A NOTICE COMPLYING WITH ORS 115.003(3). THE PERSONAL REPRESENTATIVE HAS NO GREATER RIGHT TO RECOVER THAN THE DECEDENT WOULD HAVE HAD IF LIVING, AND THE PERSONAL REPRESENTATIVE IS SUBJECT TO ALL THE DEFENSES THAT COULD HAVE BEEN ASSERTED AGAINST THE DECEDENT. 31 AM CHAPTER 6 / REPRESENTATIVE CAPACITY 6-8 2012 REVISION JUR2D EXECUTORS AND ADMINISTRATORS §1124 (2002) (SUPPLEMENTED PERIODICALLY). FOR A DISCUSSION OF SURVIVAL OF CAUSES OF ACTION AND SUBSTITUTION OF PARTIES, SEE CHAPTER 7. OF THE DECEDENT MAY BE CONTINUED AS PROVIDED IN ORCP 34 B (2) WITHOUT

241) The Heirs fraudulently and illegally stole the proceeds from the Plaintiff and used a handful of illegal tactics to complete the interception.

242) Local Law enforcement told Plaintiff it was a Civil matter.

243) Plaintiff used all his own money to finish the claim and had no money for an attorney at the time the Heirs stole Plaintiffs proceeds.

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244) The Heirs Intentionally gave false allegations in order to remove the Plaintiff stating he was a guest in the house, when he lived there for 3 years.

245) Plaintiff by UCC would have had an automatic stay, and had he known the law he could have defended his self while staying in the house and not had to do it while sleeping in his truck.

246) The Heirs attorney knew or should have known this, yet he made Plaintiff believe he was going to be arrested and removed from the house.

247) Plaintiff tried to bring a trailer that was in dire need of maintenance on the road against his better judgement. Plaintiff lost Truck, Trailer, and Load due to the pressure of trying to accommodate the Heirs.

248) Moreover, only the Plaintiff was evicted, when there was three other people at the property that were openly destroying it, and they were not evicted.

249) The Heirs should have to pay what they have taken, and what they have done, and what they continue to do… They point blank lied and committed fraud and extortion against Plaintiff and its verifiable. (SEE EXHIBIT B where Its shown that every single response on the Answer, Amended Answer, and MSJ are all knowingly misleading responses also see EXHIBIT 6, and compare with the "Answer" and Supporting declarations & Affidavit of Ron Phillips & Statement of Claim/Exhibit 21) Their actions were motivated in order to illegally take over a

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$100,000 in cash and assets from Plaintiff by using their fiduciary powers to do it. They aligned the court ordered requirements that was required to follow in order to keep Plaintiffs rights as a creditor up in a way to cause the absolute most difficult path possible, setting Plaintiff up with the most heavily loaded landmines.

250) Plaintiff recognized the sabotage issues when dodging a lien "deal breaker" months before, in November 2020, when the Heirs asked some specific questions that only someone trying to get someone to make a procedural error in the process would have made. Absolutely outlining their character and turning a light on the premeditated attack their lawyer undeniably helped blueprint for them. They lied to the court stating Plaintiff was a guest, and would not leave the house, yet allowed three destructive people that were the REASON Joanna had Plaintiff building a 160-foot fence to keep out. Allowed them to sabotage Plaintiff by destroying the basement and evicted only Plaintiff in order to get the timing right, allowing a pair of brothers who had squatted there for 20 years, one who had gone to prison for beating up Jolie and firing a weapon in the act of a crime. With a combined arrest record of literally 50 events, replacing Plaintiff at the property with zero incidences (until the false arrest that caused the issues herein) without rhyme or reason except to get Plaintiffs assignment and as much property as they could… blaming Plaintiff for everything at the house that he was there to fix, taking his money, committing crimes against him, throwing his property out in the mud (SEE EXHIBIT 20), destroying his work, so that he struggled to finish and this all prevented him from

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defending his self, and in the end filing counter claims against Plaintiff to make him pay money for asking for what money he had been assigned and owed.

HAD THE PLAINTIFF NOT BEEN FALSE ARRESTED THE ISSUES WITH THE ASSIGNMENT CASE COULD HAVE BEEN RENDERED IN TIME FOR THE CLAIM RIGHTS TO STILL BE INSIDE THE LIMITS GIVEN BY LAW.

PROBLEM ON THE COMPLAINT ON 21CV02575

251) During the filing on the 25th of January 2021, the complaint had an unknown clerical error, the Plaintiff remained unaware of for over a year.

252) Plaintiffs Complaint Declaration was missing pages, detached somehow from the said civil case 21CV02575, and put on the Joanna Lee Bozian probate case.

253) The Plaintiff did not know of this error until February 2022 and would surely need to be corrected before trial along with other pretrial motions.

DAMAGES FROM MARCH 6TH FALSE ARREST

254) Plaintiff had evidence proving compensation was due on his computers, Phones, and hard drives, and some of that evidence Plaintiff had only one copy; this evidence was with Plaintiff at his home on March 6th, 2022.

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255) Resulting in direct and irreparable harm to the Plaintiff, On March 6th, 2022, a domino chain of events causing heavy damages occurred resulting from the false arrest influenced from the misconduct from West Linn Police Officers Dana Gunnerson, and Catlyn Blyth.[5]

256) These Officers actions directly caused catastrophic damages to civil claim 21CV02575, valued estimated at $180,000 dollars.

257) The damages were clearly foreseeable, and even explained in a conversation between Plaintiff at the time of arrest, eliminating all deniability by the officers.

258) Their actions were willful and reckless.

259) Their actions were intentional, and they clearly had knowledge since both officers tried to hide the same series of events to gain probable cause and circumvent tenant law. And in doing so violated the Fourth, Fifth, Sixth, Eighths,

[5] *Danna Gunnerson, and Caitlin Blyth, came to Plaintiff's and Massiel Galla's residence, where Plaintiff was moving out, but was requesting his car keys that Massiel had in her position, after approaching Massiel Galla stating "we need to find another incident", twisting the words around from Plaintiff so that they add elements that factually didn't exist, and ignore both the fact that Plaintiff was in defense of his own property, and legally had the right to prevent Massiel when she was threatening to burn down the house with 5 Gallons of gas she went to the store and purchased.*

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Ninth and 14th Amendment as well as a 42U.S.C section 1983 violation of civil Rights.[6]

260) Where West Linn Police Officer Defendants, did in fact violate the Plaintiffs Constitutional Rights, by knowingly, intentionally, and willfully persuaded Massiel Galla to add prior arguments between Plaintiff and her that were not unlawful, nor caused harm into a report, twisting the alleged facts as mentioned herein in order to justify immediate eviction when it was not due.

261) The Defendants also arrested Plaintiff knowing the elements were not met, intentionally ignoring the requirements needed to constitute a crime.[7]

262) Plaintiff debated with him on this exact topic so its certain that Caitlin Blyth absolutely knew the elements were not met. Plaintiff while held under these fabricated pretenses Plaintiff Filed multiple motions to the District Attorney

[6] These actions can be validated by Massiel Galla, Massiel Gallas Conversation with Plaintiffs Mother, The Jail Transcripts between Plaintiffs Mother and Plaintiff,

[7] Caitlin Blyth pulled up the Plaintiff, on Plaintiffs request, for the elements of what he was being arrested for.

The part of the police report where it said Plaintiff became argumentative it was over this topic. There was no justification of the arrest, the Officers knew that they did not have the proper facts to arrest the Plaintiff… yet they did it anyways. Plaintiff knew the law, knew his right, and the officers Put "**" next to the ORS number and to further their desires regardless of Plaintiffs rights, arrested him anyways.

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Rebecca Portlock requesting a Show Cause Hearing, demanding that the Arresting Officers Answer to their actions.[8]

263) West Linn Police Officers caused an unlawful arrest, with malicious prosecution Prosecutorial misconduct; and therefore, West Linn Police Officers intentionally and willfully violated Plaintiffs right to due process under the 5th & 14th amendment Constitutional Right.

[ON CASE NO 22CN10908] - CASE DISMISSED AT TRIAL

264) Due to actions by the defendants, a series of civil rights violations caused direct harm to the Plaintiff.

265) These actions directly harmed the Plaintiff in his Property, his Freedom, his Reputation, his health, loss of belief in the government also causing PTSD, interfered with a contractual relationship when valuable evidence was left outside, in tubs that while held at Clackamas County Jail overfilled with rainwater.

266) The damages herein are very foreseeable, and not only did the Defendants make negligent choices, but they also specifically told Alleged Victim, not to touch Plaintiffs property, therefore it was left outside, and near the road to get stollen.

[8] These Show Cause Requests were all ignored.

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267) Plaintiff suffered extreme mental and emotional anguish as a result of Defendant's actions in addition to the damages to mentioned in the two previous paragraphs.

268) Additionally, Plaintiff was unable to take care of his personal property and had property in four locations.

269) Plaintiff lost the valuable use in all of his property in all four locations.[9]

270) Moreover, missed trial, and the ability to file and research pretrial motions on both his civil case and criminal case due to the *Clackamas County Jail*, and the ***Prosecutorial Misconduct of the District Attorney***, and both the *Clackamas County Police Department* and the *West Linn Police Department* complete lack of regard to Plaintiffs Constitutional rights.

271) The Plaintiff, because of these actions, ended up in the hospital with hyperthermia so cold all his toenails fell off.

[9] Estimated value of personal property for all four locations is $109,500.00

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272) Plaintiff was also exposed to covid[10], and due to Covid had his trial moved back in both the Civil Litigation, and Criminal Litigation, where he awaited in jail for five extra weeks.

273) Because of not being paid, then being arrested wrongfully, Plaintiff is homeless, and lost all of his tools he is without the means to make financial compensation that he was once able to make.

274) Plaintiff also was responsible for several other families that did work with Plaintiff on the Bozian home.

275) Plaintiff is responsible to pay these families and bankrupted his self-trying.

276) Had the defendants/heirs not interfered or had the District Attorney and Clackamas County Courts honored their duty to protect the Plaintiff… this harm would not have happened to these other families as well.

[10] Clackamas County Jail, Officers, thought the covid Procedures for the inmates were a joke, and there were even times when the Correctional Officers made a mocherry about "they are not scared of Covid".

Additionally, Officer Tate, from the CCJ specifically wouldn't give Plaintiff medicine for covid for two days because of personal indifferences with no other real label besides Police Officer Ego.

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277) Two of these families also lost their homes and ended up critically sick in the hospital with life threatening issues, completely avoidable if they had been paid.

THESE ACTIONS ARE EXTREMELY HARMFUL, AND IRREPARABLE TO BOTH THE PLAINTIFF'S HEALTH, AND REPUTATION DUE TO THE ACTIONS OF THE DEFENDANTS.

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ASSIGNABLE ASSIGNMENTS

SIGNED, TRANSFERRED, PLAINTIFF HAD OWNERSHIP BEFORE JOANNA DIED.

(§11.5) ASSIGNMENTS THE ASSIGNEE OF A RIGHT TO BRING AN ACTION STANDS IN THE SHOES OF THE ASSIGNOR AND IS A REAL PARTY IN INTEREST. PACIFIC COAST AGRICULTURAL EXPORT ASSO. V. SUNKIST GROWERS, INC., 526 F2D 1196, 1208 (9TH CIR 1975). WHEN ALL THE RIGHTS TO A CLAIM ARE ASSIGNED, ONLY THE ASSIGNEE MAY BRING SUIT. PORTLAND BASEBALL CLUB, INC. V. KUHN, 368 F SUPP 1004, 1008 (D OR 1971), AFF'D, 491 F2D 1101 (9TH CIR 1974). IF THERE IS ONLY A PARTIAL ASSIGNMENT WITH THE ASSIGNOR AND THE ASSIGNEE EACH RETAINING AN INTEREST IN THE CLAIM, THEN BOTH ARE REAL PARTIES IN INTEREST. HOEPPNER CONSTR. CO. V. UNITED STATES, 287 F2D 108, 111 (10TH CIR 1960).

EXAMPLE: WHEN ACCOUNTS RECEIVABLE ARE ASSIGNED AS SECURITY, BOTH THE ASSIGNOR AND ASSIGNEE WOULD BE REAL PARTIES IN INTEREST IN AN ACTION ARISING OUT OF THOSE ACCOUNTS. DIVERSA-GRAPHICS, INC. V. MANAGEMENT & TECHNICAL SERVICES CO., 561 F2D 725, 727 (8TH CIR 1977).

RECEIPT BY THE ASSIGNOR OF THE BENEFITS OF THE LITIGATION DOES NOT DISQUALIFY THE ASSIGNEE AS A REAL PARTY IN INTEREST. THUS, MEMBERS MAY ASSIGN THEIR CLAIMS TO AN ASSOCIATION, WHICH CAN THEN PROSECUTE THE CLAIMS IN ITS NAME AND RETURN THE PROCEEDS TO THE MEMBERS. KLAMATH-LAKE PHARMACEUTICAL ASS'N V. KLAMATH MEDICAL SERV. BUREAU, 701 F2D s1276, 1282 (9TH CIR 1983).

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EVEN IF THE ASSIGNMENT IS FOR COLLECTION PURPOSES ONLY, THE ASSIGNEE IS A REAL PARTY IN INTEREST. TITUS V. WALLICK, 306 US 282, 288–289, 59 S CT 557, 83 L ED 653 (1939); HIBERNIA SEC. CO. V. UNITED MFG. CO., 154 OR 369, 379, 59 P2D 384 (1936).

IF AN ISSUE ARISES REGARDING WHETHER AN ASSIGNEE IS A REAL PARTY IN INTEREST, THE COURT WILL LOOK TO THE INTENT OF THE PARTIES TO DETERMINE THE NATURE OF THE ASSIGNED INTEREST. KLAMATH-LAKE PHARMACEUTICAL, 701 F2D AT 1283. IN SOME CASES, THE ASSIGNMENT MAY FAIL TO TRANSFER THE CLAIM FOR RELIEF. FARM BUREAU CO-OPERATIVE MILL & SUPPLY, INC. V. BLUE STAR FOODS, INC., 238 F2D 326, 331 (8TH CIR 1956) (CITING FIRST NAT'L BANK V. MCCREARY, 66 OR 484, 489–490, 132 P 718 (1913)).

THE COURT WILL ALSO CONSIDER WHETHER THE ASSIGNMENT IS VALID. AMERICAN NAT'L BANK & TRUST CO. V. BAILEY, 750 F2D 577, 585 (7TH CIR 1984); KLAMATH-LAKE PHARMACEUTICAL ASS'N, 701 F2D AT 1283.

ASSIGNMENT IN CONSTRUCTION CONTRACTS

AS NOTED ABOVE ONLY THE BENEFITS OF A CONTRACT CAN BE ASSIGNED - NOT THE BURDEN. IN THE CONTEXT OF A BUILDING CONTRACT:

3) the employer may assign its right to have the works constructed, and its right to sue the contractor in the event that the works are defective – but not its obligation to pay for the works.
4) the contractor may assign its right to payment of the contract sum - but not its obligation to construct the works in accordance with the building contract or its obligation to meet any valid claims, for example for defects.

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After assignment, the assignee is entitled to the benefit of the contract and to bring proceedings against the other contracting party to enforce its rights. The assignor still owes obligations to the other contracting party and will remain liable to perform any part of the contract that still has to be fulfilled since the burden cannot be assigned. In practice, what usually happens is that the assignee takes over the performance of the contract with effect from assignment and the assignor will generally ask to be indemnified against any breach or failure to perform by the assignee. The assignor will remain liable for any past liabilities incurred before the assignment.

In construction contracts, the issue of assignment often arises in looking at whether collateral warranties granted to parties outside of the main construction contract can be assigned.

Funders may require the developer to assign contractual rights against the contractor and the design team as security to the funder, as well as the benefit of performance bonds and parent company guarantees. The developer may assign such rights to the purchaser either during or after completion of the construction phase.

CONTRACTUAL ASSIGNMENT PROVISIONS

Many contracts exclude or qualify the right to assignment, these provisions are pre loss assignments and the courts have confirmed that a clause which provides that a party to a contract may not assign the benefit of that contract without the consent of the other party is legally effective and will extend to all rights and benefits arising under the contract, including the right to any remedies.

Recently the Assignment of Benefits statutes have changed due to an increasing number of litigants pursuing the "AOB" on insurance claims, protecting both the homeowner, and the contractor. Due to an increasing number and strength of Hurricanes and Hailstorms, Florida is a National leader in these claims. Recently it has been upheld that regardless of an anti-assignment clause in a homeowners insurance clause, a post loss assignment is valid subject to the following exclusions:

1) only one of the parties may assign.

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2) only certain rights may be assigned – for example, warranties and indemnities may be excluded.
3) a limit on the number of assignments - as is almost always the case in respect of collateral warranties.
4) a right to assign only to a named assignee or class of assignee.

Note that in some agreements where there is a prohibition on assignment, it is sometimes possible to find the reservation of specific rights to create a trust or establish security over the subject matter of the agreement instead.

LEGAL AND EQUITABLE ASSIGNMENT

The ***Universal Commercial Code***, ***The Restatements of Law***, or even ***The Law of Property Act*** creates the ability to legally assign a debt or any other chose in action where the debtor, trustee or other relevant person is notified in writing. If the assignment complied with the formalities in the Act, it is a legal assignment, otherwise it will be an equitable assignment.

Some transfers can only take effect as an equitable assignment, for example:

1) an oral assignment.
2) an assignment by way of charge.
3) an assignment of only part of the chosen in action.
4) an assignment of which notice has not been given to the debtor.
5) an agreement to assign.

If the assignment is equitable rather than legal, the assignor cannot enforce the assigned property in its own name and to do so must join the assignee in any action. This is designed to protect the debtor from later proceedings brought by the assignor or another assignee from enforcing the action without notice of the earlier assignment.

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SECURITY ASSIGNMENTS

Using assignment as a way of taking security requires special care, as follows:

- if the assignment is by way of charge, the assignor retains the right to sue for any loss it suffers caused by a breach of the other contract party.
- if there is an outright assignment coupled with an entitlement to a re-assignment back once the secured obligation has been performed, it is an assignment by way of legal mortgage.

ALTHOUGH THE MAKER OF A THIRD-PARTY BENEFICIARY CONTRACT HAS THE RIGHT TO BRING SUIT, THE MAKER IS NOT AN INDISPENSABLE PARTY TO AN ACTION BY THE BENEFICIARY. NEW AMSTERDAM CAS. CO. V. W.D. FELDER & CO., 214 F2D 825, 826 (5TH CIR 1954); SHORE V. ST. PAUL FIRE & MARINE INS. CO., SUPP 164, 165 (D OR 1965).

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42 U.S.C SECTION 1983 CIVIL RIGHTS

CLAIMS OF ACTION

TO PREVAIL IN A CLAIM UNDER SECTION 1983,

THE PLAINTIFF MUST PROVE TWO CRITICAL POINTS:

1.

A PERSON SUBJECTED THE PLAINTIFF TO CONDUCT THAT OCCURRED UNDER COLOR OF STATE LAW.

2.

AND THIS CONDUCT DEPRIVED THE PLAINTIFF OF RIGHTS, PRIVLEGES, OR IMMUNITIES GUARANTEED UNDER FEDERAL LAW OR US CONSTITUTION.

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COUNT 1:

VIOLATIONS OF 42 U.S.C. 1983:

UNLAWFUL DETENTION AND CONFINEMENT

278) Plaintiff repeats and realleges and incorporates by reference the allegations in paragraphs 1 through 270 above with the same force and effect as if herein set forth.

279) As a result of their concerted unlawful and malicious detention and confinement of Plaintiff, Defendant, Officer Gunnerson and Officer Blyth, deprived Plaintiff of both his right to his liberty without due process of law and his right to equal protection of the laws, and the due course of justice was impeded, in violation of the Fourth, Fifth and Fourteenth Amendments of the Constitution of the United States and 42 U.S.C. sec. 1983.

280) WHEREFORE, Plaintiff demands judgment for the false detention and confinement against all the Defendants jointly and severally, for actual, general, special, compensatory damages in the amount of $500,000 and further demands judgment against each of said Defendants, jointly and severally, for punitive damages in the amount of $100,000, plus the costs of this action, including attorney's fees, and such other relief deemed to be just and equitable.

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COUNT 2:

VIOLATIONS OF 42 U.S.C. 1983:

CONSPIRACY

281) Plaintiff repeats and realleges and incorporates by reference the allegations in paragraphs 1 through 273 above with the same force and effect as if herein set forth.

282) As a result of their concerted unlawful and malicious conspiracy of Defendants, Plaintiff was deprived of both his liberty without due process of law and his right to equal protection of the laws, and the due course of justice was impeded, in violation of the Fourth, Fifth, Sixth, and Fourteenth Amendments of the Constitution of the United States and 42 U.S.C. sec. 1983.

283) WHEREFORE, Plaintiff demands judgment for the conspiracy against all the Defendants jointly and severally, for actual, general, special, compensatory damages in the amount of $500,000 and further demands judgment against each of said Defendants, jointly and severally, for punitive damages in the amount of $100,000, plus the costs of this action, including attorney's fees, and such other relief deemed to be just and equitable.

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COUNT 3:

VIOLATIONS OF 42 U.S.C. 1983:

REFUSING OR NEGLECTING TO PREVENT

284) Plaintiff repeats and realleges and incorporates by reference the allegations in paragraphs 1 through 276 above with the same force and effect as if herein set forth.

285) At all times relevant to this Complaint, Defendant police officers of the West Linn Police Department and Clackamas County Police Department were acting under the direction and control of Defendant County of Clackamas and under color law.

286) Acting under color of law and pursuant to official policy or custom, Gunnerson, Blyth, John Does, and the City and County of Clackamas knowingly, recklessly, or with gross negligence failed to instruct, supervise, control, and discipline on a continuing basis Defendant police officer in their duties to refrain from:

287) unlawfully and maliciously harassing a citizen who was acting in accordance with his constitutional and statutory rights, privileges, and immunities.

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288) unlawfully and maliciously arresting, imprisoning, and prosecuting a citizen who was acting in accordance with his constitutional and statutory rights, privileges, and immunities,

289) conspiring to violate the rights, privileges, and immunities guaranteed to Plaintiff by the Constitution and laws of the United States under the Fourth, Fifth, Sixth and Fourteenth amendments of the United States Constitution and the laws of the State of Oregon; and

290) otherwise, depriving Plaintiff of his constitutional and statutory rights, privileges, and immunities. The due process clause of this section requires at a minimum the same guarantees as those protected by the due process clause of the federal constitution.

291) Defendants had knowledge or, had they diligently exercised their duties to instruct, supervise, control, and discipline on a continuing basis, and should have had knowledge that the wrongs conspired to be done, as heretofore alleged, were about to be committed. Defendants had power to prevent or aid in preventing the commission of said wrongs, could have done so by reasonable diligence, and knowingly, recklessly, or with gross negligence failed or refused to do so.

292) Defendants directly or indirectly, under color of law, approved or ratified the unlawful, deliberate, malicious, reckless, and wanton conduct of Defendant police officers heretofore described and have a pattern and other cases before this

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honorable court of the same affairs, or similar instances, and have not or refuse to put corrective measures in place to stop the abusive and false and unwarranted use of arrests, resulting in "wrongful arrests", and other costly negligent actions by the West Linn police department, and the Clackamas County Police Department..

293) As a direct and proximate cause of the negligent and intentional acts of Defendants as set forth in paragraphs above, Plaintiff suffered physical, mental, emotional and psychological injury, loss of income, reputation, property, including future options, and relationship damaging choices that should have been at the control of the Plaintiffs own choices, and severe mental anguish in connection with the deprivation of his constitutional and statutory rights guaranteed by the Fourth, Fifth, Sixth and Fourteenth Amendments of the Constitution of the United States and protected by 42 U.S.C. sec. 1983.

294) WHEREFORE, Plaintiff demands judgment against all the Defendants jointly and severally, for actual, general, special, compensatory damages in the amount of $500,000 and further demands judgment against each of said Defendants, jointly and severally, for punitive damages in the amount of $100,000, plus the costs of this action, including attorney's fees, and such other relief deemed to be just and equitable.

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COUNT 4:

MALICIOUS PROSECUTION

295) Plaintiff repeats and realleges and incorporates by reference the allegations in paragraphs 1 through 287 above with the same force and effect as if herein set forth

296) In order to be successful in this type of lawsuit, certain elements of malicious prosecution must be proven. If any one of the following four elements is missing, the case is likely to be dismissed, or a judgment entered against the plaintiff.

297) The original case was terminated in favor of the plaintiff (who was the defendant in the original case) – this case must have ended before a malicious prosecution suit can be filed.

298) The defendant filed, or played an active role in, the original case – the defendant must have been responsible for bringing the original case, not simply have been a participant in the case or trial.

299) The defendant had no reasonable grounds, or probable cause, to file and pursue the original case – it must be proven that the defendant had no actual belief that the plaintiff was guilty or liable in the original case.

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300) The defendant filed or pursued the original case for an improper purpose – it must be proven that the defendant pursued the original case for an abusive purpose, such as a desire to ruin the plaintiff's reputation, or simply out of malice or ill will.

301) When a plaintiff is successful in his case, damages for malicious prosecution may be substantial. If the plaintiff has been able to prove monetary damages, such as lost wages, or loss of employment, attorney's fees paid in defense of the claim, and other costs, he may be awarded the full amount proven. In addition, the plaintiff may be awarded compensation for damage to his reputation, and pain and suffering. Depending on the circumstances, the court may even order the defendant to pay punitive damages.

302) In the matters here in, the Defendants west Linn police officers knew or should have known that plaintiff was innocent.

303) Police officers made remarks to Massiel Galla about "coming up with another incident to get plaintiff out of here"

304) The District Attorney also had pictures proving Plaintiff was or there would have likely been found he was innocent. And the District Attorney Rebecca Portlock ignored these facts and kept Plain tiff in jail.

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305) The actions of the defendants cost the Plaintiff greatly, and he is now homeless from their actions.

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COUNT 5:

DENIAL OF NECESSARY

AND ADEQUATE MEDICAL CARE AND TREATMENT

306) Plaintiff repeats and realleges and incorporates by reference the allegations in paragraphs 1 through 300 above with the same force and effect as if herein set forth.

307) Plaintiff wears contacts in both of his eyes with a script of -11.00

308) At the time of arrest Plaintiff was wearing a pair of contacts.

309) Without his script of contacts Plaintiff can not see how many fingers he his self is holding up.

310) Due to the false imprisonment and other violations of Plaintiffs freedoms, Plaintiff was forced to wear his contacts for months when the life span of the contacts was two weeks.

311) Plaintiff requested for medical to address said issue multiple times.

312) The Grievances at the Jail were not being answered for many weeks, in fact, Plaintiff had a personal experience where he waited for five weeks.

313) The Medical staff would not even give Plaintiff saline solution in order to hydrate his eyes.

314) Plaintiff had to spend many weeks, due to the conditions of the Jail, and the training that they had blind because they would not properly facilitate needed treatments.

315) Plaintiffs' eyesight is bad enough that he is considered legally blind, therefore disabled.

316) This also made it hard for Plaintiff to prepare for Court.

317) This is also a violation of Plaintiffs rights in its own.

318) Plaintiff was arrested and had already lost all of his clothes, money, property, phone, and computers due to the actions of West Linn Police officers.

319) On April 12th, Plaintiff was released on a week that temperatures reached freezing temperatures daily, with frozen rain most afternoons.

320) Because of the situation the defendants left Plaintiff in, the Plaintiff had a very difficult time protecting his self from the weather.

321) The Defendants left Plaintiff vulnerable to the elements.

322) Plaintiff ended up in the hospital on or about the 15th of April 2022, with hyperthermia so bad that all his toenails fell off.

323) This harm would not have happened if it weren't for the direct actions of the Defendants.

324) Plaintiffs' emergency contact was his girlfriend, Massiel Galla.

325) due to said case he had a no contact with Massiel, enforced by the court.

326) Massiel in fear of losing her kids and complied to the courts wishes and notified West Linn Police Officers that Plaintiff had contacted her from the hospital.

327) Even though she did not want a no contact order, and even went to the Court House and scheduled a hearing to remove it [and that was denied]

328) At said hearing she testified that the DA's facts were twisted and full of half-truths.

329) The No contact waiver was denied and both witnesses said the facts were lies and the DA still pushed for prosecution.

IN THE CIRCUIT COURT FOR THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS

TYLER ALLEN LOFALL Plaintiff, vs. COUNTY OF CLACKAMAS, [DA] REBECCA PORTLOCK, WEST LINN POLICE DEPARTMENT, CLACKAMAS COUNTY POLICE DEPARTMENT, WEST LINN POLICE OFFICER DANA GUNNERSON, WEST LINN POLICE OFFICER CATLIN BLYTH, CLACKAMAS COUNTY POLICE OFFICE #1, CLACKAMAS COUNTY POLICE OFFICER #2 Defendants, THE ESTATE OF JOANNA LEE OZIAN TEAGUE BOND & ZAC BON Heirs of Joanna Lee Bozian,	**CASE NUMBER # 22CV39627** SUMMONS ORCP 7

NOTICE TO DEFENDANT:

READ THESE PAPERS CAREFULLY!

You must "appear" in this case, or the other side will win automatically. To "appear" you must file with the court a legal document called a "motion" or "answer." The "motion" or "answer" must be given to the court clerk or administrator within 30 days along with the required filing fee. It must be in proper form and have proof of service on the plaintiff.

If you have questions, you should see an attorney immediately. If you need help in finding an attorney, you may contact the Oregon State Bar's Lawyer Referral Service online at **http://www.oregonstatebar.org** or by calling (503) 684-3763 (in the Portland metropolitan area) or toll-free elsewhere in Oregon at (800) 452-7636.

IN THE CIRCUIT COURT FOR THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS

YOU ARE HEREBY SUMMONSED IN THE MATTERS FURTHER DISCRIBED UPON THE ATTACHED [AMENDED] COMPLAINT AND YOU SHALL RESPOND IN COMPLIANCE TO STATE LAW UNDER ORCP 7 TO THE PLAINTIFF WHOS ADDRESS AND NAME ARE AS FOLLOWS:

Tyler Allen Lofall
TYLERALOFALL@GMAIL.COM
(386) 262-3322

DUE to the actions of the defendants encapsulated above, the Plaintiff is now homeless, therefore it shall be allowed to have the "Answers" Served Electronically to the Plaintiff via email. *TYLERALOFALL@GMAIL.COM* With a SUBJECT LINE STATING "***CLAIM NUMBER: 22CV39627 DEFENDANT [YOUR NAME]'S ANSWER",***

IF YOU FAIL TO RESPOND, Judgment by default will be entered against you for the relief demanded in the complaint. YOU ALSO MUST FILE YOUR ANSWER WITH THE COURT!

RESPECTFULLY Submitted on his / [MY] own behalf,

DATED THIS 26th DAY OF NOVEMBER 2022.

TYLER ALLEN LOFALL
PLAINTIFF PRO SE

330) Plaintiff believes and there for alleges that the reason was that the defendants were the cause of Plaintiffs false arrest and they pressed hard to charge him with a charge he did not earn.

331) The district attorney Rebecca Portlock even tried to leverage Plaintiff on non-relevant issues to take the harassment, and Plaintiff was offered 5 days initially if admitted guilt, and Plaintiff refused and ended up doing over one hundred days in jail.

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332) MASSIEL ENDED UP BAILING THE PLAINTIFF OUT BUT IT WAS REVOKED. FOR THE SAME NO CONTACT AS HIS RELEASE ON HIS OWN RECOGNIZANCE SO AS IT WAS LIKE AS FOLLOWS:

333) PLAINTIFF WAS ARRESTED ON OR ABOUT MARCH 6TH.

334) PLAINTIFF HAD AN OFFER FOR 5 DAYS IF HE ADMITTED GUILT.

335) PLAINTIFF REFUSED TO TAKE THE CHARGE AND TOLD THE DA THAT THEY WERE GOING TO BE RESPONSIBLE FOR HIS CIVIL CLAIM THAT WAS ESTIMATED AT THE TIME FOR A VALUE OF $180,000.00.

336) MASSIEL GALLA TRACKED DOWN PLAINTIFFS' FRIENDS, TO REACH OUT TO PLAINTIFF.

337) THE PLAINTIFF WENT PRO SE, AND ON OR ABOUT APRIL 12TH, PLAINTIFF FILES FOR A RECONSIDERATION TO BE RELEASED TO AWAIT TRIAL, THIS REQUEST WAS GRANTED.

338) PLAINTIFF WAS IN THE HOSPITAL BY APRIL 15TH.

339) APRIL 15TH WEST LINN POLICE OFFICER GOODE CAME TO THE HOSPITAL, AND THIS ENDED UP BEING THE QUESTIONING THAT RE ARRESTED PLAINTIFF.

340) PLAINTIFF HAD HIS RELEASE CONDITIONS REVOKED.

341) MASSIEL BAILED PLAINTIFF OUT AGAIN,

342) THERE WAS ORIGINALLY AN ARRAIGNMENT ON MAY 18TH, BUT ON THE DAY OF THE COURT DATE THAT COURT DATE WAS NOT ON THE DOCKET…

343) PLAINTIFF PULLED OVER; CAR WAS GIVEN TO A CAR THIEF BY CLACKAMAS COUNTY POLICE OFFICER JOHN DOE 1 & 2.

344) THERE SOMEHOW PLAINTIFF WAS BEING ARRESTED FOR A THIRD TIME (TWICE ON THE SAME CHARGE).

345) PLAINTIFF BELIEVES THIS WAS BECAUSE HIS SPEEDY TRIAL TIME LIMIT WAS UP AND THEY HAD NO CASE, THEY NEEDED TO RELEASE HIM AND THEN TAKE HIM BACK INTO CUSTODY.

346) THEY DID IN FACT KEEP PLAINTIFF ON 3 SEPARATE TRIPS ONLY BEING OUT FOR A MATTER OF DAYS EACH TIME.

347) PLAINTIFF CAUGHT COVID, HYPERTHERMIA, LOST ALL HIS PROPERTY, HIS VEHICLES, HIS HEALTH, HIS EYE SIGHT, HIS CIVIL CLAIM RIGHTS, CREDIBILITY WITH WORKERS FAITH, THE HUMILIATION OF BEING HOMELESS, THE STRESS ADDED TO THE LIFE, AND PLAINTIFF HAS A STRONG SCIENCE BACKGROUND AND BELIEVES COMPLETELY THAT THE EVENTS IN OUR WORLD TODAY ARE MAGNETIC POLE RELATED AND THESE ISSUES ARE BINDING HIS FREEDOMS OF LIBERTY ON HIS LAST DAYS…

348) PLAINTIFF HAD HIS LAST COURT DATE FOR A NO CONTACT ORDER ON OR ABOUT JULY 1ST, AND HE WAS TO BE RELEASED THAT DAY.

349) THE COURTS MESSED UP DOCUMENTATION, AND PLAINTIFF STAYED IN JAIL, AND DIDN'T GET RELEASED.

350) THIS WAS ANOTHER MISTAKE FROM THE CLACKAMAS COUNTY EXECUTIVE, AND JUDICIAL BRANCHES OF LOCAL GOVERNMENT.

351) AS A RESULT, PLAINTIFF MISSED A FAMILY TRIP, FOR FOURTH OF JULY.

352) ON THE DAY OF TRIAL (JULY 14TH) THE DA DROPPED THE CHARGES AFTER PLAINTIFF SPENT NEARLY FOUR MONTHS IN JAIL, AND THEY DA HAD EXONERATING PICTURES FROM THE DAY OF ARREST.

353) None the less the Plaintiffs doctor had called Massiel telling her his status.

354) If Plaintiff had stayed away from Massiel until he got Hyperthermia, due to being released with nothing but the shirt on his back, when his residence and all of his property was at Massiel house… That amount of effort to obey the courts wishes could have cost Plaintiff his life.

355) Plaintiff violated while in the Hospital, days after being let out, while being left vulnerable and was taken back to jail shortly after.

356) Plaintiff alleges that the above-mentioned acts and/or policies and practices of the Defendant Clackamas County Jail and its employees are knowing, deliberate and intentional, in disregard for the health and well-being of Plaintiff and other inmates and such acts, policies and practices are shocking to the conscience of civilized persons and intolerable in society purportedly governed by law and considerations of process.

357) The Courts jurisdiction is invoked pursuant to 28 U.S.C. Statute 1331, 1343(a)(3) and (4), 2201 and 2202. The substantive claim in this action arises under 42 U.S.C. Statute 1983 and the Fifth, Eighth, Ninth and Fourteenth Amendments to the United States Constitution.

358) WHEREFORE, the plaintiff demands judgment against the County of Clackamas, District Attorney Rebecca Portlock, Clackamas County Police Department, and Clackamas County Jail.:

a) for compensatory damages.

b) Treble Damages

c) for punitive damages.

d) for attorney⍰s fees, costs, and interest; and

e) for any other relief, this Court deems just and necessary.

COUNT 6:

FALSE IMPRISONMENT

359) Plaintiff repeats and realleges and incorporates by reference the allegations in paragraphs 1 through 351 above with the same force and effect as if herein set forth.

360) As a result of the Defendants actions, Plaintiff was arrested and required to spend a significant amount of time in jail due to the inability to pay administrative costs in order to be released; and unwilling to take a guilty plea alleging his innocence.

361) The Actions of the West Linn Police Officer Defendants, where coercive, unlawful, unjustified, and a malicious detention and confinement of Plaintiff. Defendants, Officer Gunnerson and Officer Blyth, deprived Plaintiff of both his right to his liberty without due process of law and his right to equal protection of the laws, and the due course of justice was impeded.

362) Plaintiff suffered extreme mental and emotional anguish as a result of Defendants deliberate and malicious premeditated script, where words were put into the Plaintiffs mouth added to discovery, leading the unanswered motions to compel the false swearing by the officers of the law. Plaintiff now experiences PTSD, and extreme mental and emotional anguish as a result of their actions.

363) The Defendants discoveries that have nearly identical fabrications and the two officers being separated a majority of the time is an indicator that their actions are not the first of their kind. The two previous days is a clear indication that there was both direction to Macy Galla/Girlfriend/ alleged victim, how to circumvent tenant law, and arrest the Plaintiff without the proper violations of law.

364) Plaintiff Had a 20 minute debate with the Defendant Officers, knowing the law he knew that he did not break it, this information was then requested in the Demurrer the Plaintiff filed, for not being "indefinite and certain", bringing light to the lack of evidence that should have ended in a dismissal, yet instead the District Attorney ignored the entire topic in whole, and attacked the topic "void for vagueness", where the court allowed such a response.

365) Plaintiff would show that the actions of Defendant herein reflect a malicious, intentional, willful, and reckless disregard of the rights of Plaintiff herein, and warrant an award of punitive damages to the Plaintiff.

366) Plaintiff would show the willful intentional acts of the Defendants that constitute abuse of power, false imprisonment, false arrest, intentional infliction of emotional distress, amongst various misconduct in violation of the Fourth, Fifth, Eighth and Fourteenth Amendments of the Constitution of the United States and 42 U.S.C. sec. 1983.

367) WHEREFORE, Plaintiff demands judgment for the false detention and confinement against all the Defendants jointly and severally, for actual, general, special, compensatory damages in the amount of $500,000 and further demands judgment against each of said Defendants, jointly and severally, for punitive damages in the amount of $100,000, plus the costs of this action, including attorney's fees, and such other relief deemed to be just and equitable.

a) the plaintiff demands judgment against the Heirs:

b) for compensatory damages.

c) Treble Damages

d) for punitive damages.

e) for attorney's fees, costs, and interest; and

f) for any other relief, this Court deems just and necessary.

COUNT 7:

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

368) Plaintiff repeats and realleges and incorporates by reference the allegations in paragraphs 1 through 322 above with the same force and effect as if herein set forth.

369) This Cause of action is for the Heirs for forcing Plaintiff to be in a crippled financial position in order to take his assignment, SEE EXHIBIT 21.

370) FOR THE POLICE DEPARTMENT for their actions that they should have seen and chose not to when they created false testimony and arrested the Plaintiff, left his property outside and by the road, and told Massiel Galla not to touch or protect any of his property, and that property was stollen.

371) The Defendants' unlawful conduct as previously described in this Complaint was known to the Defendants to be likely to produce Emotional Distress in the Plaintiff, and it did in fact produce emotional distress in the Plaintiff. As a direct and proximate result of the Defendants' unlawful conduct the Plaintiff has suffered emotional distress and emotional damage of at least $100,000.00.

372) The Defendants' conduct as previously described was outrageous, without legal or factual justification, was malicious and wanton, and this entitles the plaintiff to recover punitive damages as a result of the wrongful conduct of the

defendants in the amount of at least $25,000 from each Defendant, together with reasonable attorneys' fees and costs.

373) WHEREFORE, the plaintiff demands judgment against the Heirs:

a) for compensatory damages.

b) Treble Damages

c) for punitive damages.

d) for attorney's fees, costs, and interest; and

e) for any other relief, this Court deems just and necessary. `

COUNT 8:

TORTIOUS INTERFERENCE OF AN ECONOMIC RELATION / CONTRACTUAL AGREEMENT

(CAUSE OF FALSE ARREST)

375) Plaintiff repeats and realleges and incorporates by reference the allegations in paragraphs 1 through 360 above with the same force and effect as if herein set forth.

376) For the sake of brevity, Plaintiff repeats, reiterates, and fully incorporates all preceding paragraphs with regard to the facts, jurisdiction, and venue.

377) Both of the Defendants, Jolie's living heirs, knew of the existence of a business relationship between the Plaintiff and Jolie, their mother, and such is established through actual conversations, emails, and phone calls these Defendants had with the Plaintiff and other witnesses including the bank, mortgage company, and the insurance company which all concerned the Plaintiff's efforts to be paid consistent with the agreements, contract, and work he had already done for Jolie/the Decedent.

378) The Defendants knew that Plaintiff was expecting to be duly paid for the work he had done on the Property, now their inheritance, and intentionally and unjustifiably interfered in the processes that were in motion that were the necessary steps to being paid by third parties which only required them to ratify the

contractual agreement(s) that they had affirmed to them about the nature of the Property's renovations and restorations by several people including uninterested witnesses.

379) Plaintiff has suffered damages to wit, not being paid, which has caused the amount owed to him already in arrears as per the Defendants' mother, Jolie/the Decedent, to persist even longer as an outstanding debt for which payment has not been received by Plaintiff thereby affecting his ability to live, endure, and survive without the money that had been his whole source of compensation and payment expectation, all of which the Defendants did know and understand from these facts being expressly and explicitly conveyed to them PRIOR to the Plaintiff instigating this instant civil action.

380) WHEREFORE, Plaintiff demands a judgment against Defendants herein for damages in an amount sufficient to compensate him for the damages he sustained due to their intentional interference with his contractual relationship with the Decedent as stated supra, in addition to all taxable court costs and all.

381) The above and foregoing actions of the Defendants, West Linn Police Department, and District Attorney give rise to a cause of action for tortious interference with prospective business relations and/or tortious interference with contract by willfully, recklessly, and intentionally interfered with Plaintiffs Contract/Assignment of Benefits claim (21CV02575) by stepping outside of their

call of duty in an attempt to circumvent tenant law in favor of Macy Galla, owner and girlfriend of the Plaintiff by arresting Plaintiff without due process.

382) Defendants knew or should have known that Plaintiff would be exposed to irreparable harm in the event that he went to jail with all of his property outside in tubs on March 6th. Additionally, the Defendants made a promise to the Plaintiff that all of his tubs around his Ford Expedition would be lidded and put inside said Ford Expedition before the officers were to leave the property. Instead, Negligent, and irresponsible actions of the Officers told Macy Galla not to touch Plaintiffs property until his return.

383) When Plaintiff returned all of the tubs were full to the top with water, including a tub with all his evidence in it for Clackamas County Civil Claim 21CV02575, a $150,000 civil claim that Plaintiff was litigating pro se.

384) Plaintiff seeks all available equitable relief the Court can award including incidental and consequential damages if they too are available. WHEREFORE, the plaintiff demands judgment for:

a) for compensatory damages.

b) Treble Damages

c) for punitive damages.

d) for attorney's fees, costs, and interest; and

e) for any other relief, this Court deems just and necessary.

COUNT 9:

TORTIOUS INTERFERENCE OF AN ECONOMIC RELATION / CONTRACTUAL AGREEMENT

(HEIRS INTERCEPT ASSIGNMENT OF BENEFITS)

385) Plaintiff repeats and realleges and incorporates by reference the allegations in paragraphs 1 through 377 above with the same force and effect as if herein set forth.

386) Plaintiff had an Assignment of Benefits, which assigned Insurance Proceeds and Claim rights of Joanna Lee Bozian to the Plaintiff immediately upon signing on or about June 24th, 2020.

387) Said assignment assigned Joanna's homeowner rights between her and her insurance carrier "Assurant" after a fire from December 10th, 2018.

388) The assignment ran complementary to a contract previously signed between Joanna and Plaintiff signed on or about April 17th, 2019.

389) Furthermore, since July 27th, 2017, Plaintiff has represented Joanna as her property caretaker and helped her get the property under control from squatters, and people causing issues upon her property, but more than anything, Plaintiff was there to bring Joanna's house up to code standards. Plaintiff originally was at the house to complete a remodel in the basement, which was still under way when a

fire started in the garage and Plaintiff was notified by one of Joanna's guests on Dec 10th, 2018, at about 2pm.

390) Upon information and belief due to the good job the Plaintiff did on the portions of the house that he did complete, Joanna wanted additional help with the newly damaged are of the house and believed that Plaintiff could do her wishes and she wanted him to take care of everything.

391) Joanna Lee Bozian Trusted Plaintiff very much.

392) Plaintiff was asked to take on the Insurance claim project, and repair that part of the house too. through Joanna Assurant was notified immediately that Plaintiff was going to do the repairs and he was authorized to handle anything in the shoes of Joanna. Joanna put Assurant on notice of this through the inside adjuster and the "over-writer" Weldon Whitley.

393) Plaintiff worked with Assurant for 2 years on this claim, and had done all the work in good faith, and paid by him.

394) Joanna Died and the claim was not closed out due to covid everything took extremely long.

395) Months Before Joanna's Death, there was an assignment of benefits drawn up allowing the final checks to be given directly to the plaintiff.

396) Assurant was on notice of this.

397) Assurant sent the checks directly to the Mortgage Company at Plaintiffs request.

398) There was paperwork that JP Morgan needed signed by the homeowner in order to release the funds, and since Joanna Died the representative of the estate needed to sign them in order to release the funds.

399) Plaintiff gave all the documents to the Heirs of Joanna, and because they lived two hours away, they were going to send them from Eugene where they live.

400) They left out the Plaintiffs deposit documents and inserted their own, hiding this fact from the Plaintiff.

401) At some time in Late October or November 2020, JP Morgan, was told that Plaintiff had forged the assignment, and not to communicate with him anymore.

402) At or about this same time JP Morgan told Plaintiff that he would need a court order in order to communicate any further with Plaintiff, this stemmed information they were receiving from Heir Teague Bond.

403) Plaintiff then learned that the Heirs had made disparaging remarks about the quality, and legality of said Assignment of Benefits and additionally Plaintiffs

services, integrity, and professionalism to the home that JP Morgan still was partial owner of, and that Teague Bond had made false allegations claiming Plaintiff Fraudulently presented them with the Assignment.

404) Plaintiff then had his Proceeds wrongfully taken by the Heirs.

405) Heirs acted intentionally and maliciously in interfering with Plaintiffs contractual agreement, and unfairly to both Plaintiff and Plaintiffs unpaid helpers.

406) The foregoing actions on the part of the Heirs constitute an unlawful interference with a contractual agreement between Plaintiff, Tyler Allen Lofall, and Assurant, the Homeowners Insurance Company:

407) There was a contractual agreement between Plaintiff and Assurant.

408) Heirs clearly knew of Plaintiffs contractual agreement with Assurant, and the funds for work completed.

409) Heirs wrongfully interfered with Plaintiffs Contractual Agreement.

410) Heirs' interference is the reason for the loss Plaintiffs contractual agreement proceeds with Assurant, and.

411) as a result of Heirs actions, Plaintiff has been damaged.

412) WHEREFORE, the plaintiff demands judgment against the Heirs:

a) for compensatory damages.

b) Treble Damages

c) for punitive damages.

d) for attorney⍰s fees, costs, and interest; and

e) for any other relief, this Court deems just and necessary.

COUNT 10

CONVERSION

413) Plaintiff repeats and realleges and incorporates by reference the allegations in paragraphs 1 through 405 above with the same force and effect as if herein set forth.

414) Plaintiff seeks damages of the sum certain, but as of yet unascertainable amount, for the wrongful loss of properties left at the following that was lost due to events herein: at 2535 Sunset Ave, West Linn OR 97068 (PLAINTIFFS HOME AT THE TIME)

PLAINTIFF LOST PROPERTY AT FOUR LOCATIONS WHILE FALSELY INCARCERATED IN MARCH AND APRIL:

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1. 2535 SUNSET AVE, WEST LINN $20,000 VALUE ESTIMATED

A. PLAINTIFF HAD AN ESTIMATED $20,000 IN TOOLS OUTSIDE, (LINE ITEMIZED LISTS TO COME FOR TRIAL)

B. PLAINTIFF ALSO HAD TWO TRAILERS OUTSIDE NEXT TO HIS TRUCK, ONE ON TOP OF THE OTHER ONE.

C. BOTH TRAILERS AND AN ESTIMATED $10,000 IN TOOLS WAS STOLLEN WHILE PLAINTIFF WAS IN JAIL.

D. THE OTHER HALF OF PLAINTIFFS TOOLS WERE UNDER WATER, AND USELESS, AND BROKEN DUE TO SAID WATER,

2. 1907 RIDGE ROAD SE, SHELTON WA (STORED TOOLS AND FIREWOOD) ESTIMATED VALUE $10,000.

3. 423 NAGAL RD, WASHOUGAL, WA (HAD AT LEAST $75,000 IN TOOLS, TRAILERS, A 2005 SUBURBAN, MULTIPLE WELDERS, GENERATORS,).

4. JOHN BARRICHELLO'S HOUSE IN CLACKAMAS COUNTY RD

MOST IMPORTANTLY, PLAINTIFF NO LONGER HAD KEY EVIDENCE FOR SAID CLAIM, AND THE GOVERNMENT EMPLOYEES ARE DIRECTLY RESPONSIBLE.

LOCATION (4) HAD THE LAST OF PLAINTIFF'S TOOLS STORED THERE; AND PLAINTIFF WAS HELPING ON THE 24TH OF MAY 2022 TO RECOVER HIS FRIENDS (JOHN BARACHELLO'S) CRV THAT WAS STOLLEN, AND IN FACT PLAINTIFF DID RECOVER THE CRV.

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415) Plaintiff was dropping off the people that took the car, when two John Doe Clackamas police officers pulled Plaintiff over for the now stollen car missing a license plate.

416) The John Doe Police officers were told about the recently stollen car.

417) The Police officers with no regard, when they knew, or should have known that giving the lady who stole the car already would have a high likelihood in additional problems.

418) The Plaintiff demanded that the keys not be given to the car thief.

419) The Police officers without using good judgement nor care for the requests of the plaintiff gave the car thief the keys.

420) Car thief did again steal the car, and this time it was more difficult to be recovered, and due to the difficulties, a new key, and tires had to be purchased, damage was done to the car, and in retaliation of said incidents CRV owner John Barichello kept/damaged the last of Plaintiffs tools/Property (LIST TO COME before trial)

COUNT 11

BREACH OF FIDUCIARY DUTY (HEIRS)

421) Plaintiff repeats and realleges and incorporates by reference the allegations in paragraphs 1 through 378 above with the same force and effect as if herein set forth.

422) A cause of action for Breach of Fiduciary Duty arises with a fiduciary fails to use reasonable care in that relationship and the individual to whom this duty is

owed suffers a harm as a result. It is held that a fiduciary relationship is *"any relation existing between parties to a transaction wherein one of the parties is in duty bound to act with the utmost good faith for the benefit of the other party."* (Wolf v. Superior Court (2003) 107 Cal.App.4th 25, 29 [130Cal.Rptr.2d 860].)

423) The Defendant Heirs stepped into the position of the decedent once Defendant Teague was elected Personal Representative in October 2020. Plaintiff had given Defendant the paperwork to release the funds with regarding Plaintiffs assignment proceeds, to turn in with the request for inspection, once she received her personal representative documentation that was expected withing the next few days. It was because of the defendants living over two hours away that Plaintiff did this, and the defendants abused this, and their own deposit/bank documents in the place of Plaintiffs.

424) Instead of giving reasonable care for the Plaintiff, defendants capitalized on Plaintiffs demise and caused additional harm to his vulnerable position bringing rise to civil cause of action for breach of fiduciary duty, the Plaintiff claims that was harmed by the defendant's breach of the fiduciary duty to use reasonable care WHEREFORE, the plaintiff demands judgment against the Heirs:

(a) for compensatory damages.

(b) Treble Damages

(c) for punitive damages.

(d) for attorney s fees, costs, and interest; and

(e) for any other relief, this Court deems just and necessary.

COUNT 12

BREACH OF FIDUCIARY DUTY

POLICE OFFICERS / DIST5RICT ATTORNEY AND CLACKAMAS COUNTY JAIL

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425) Plaintiff repeats and realleges and incorporates by reference the allegations in paragraphs 1 through 417 above with the same force and effect as if herein set forth.

426) All Defendants have a fiduciary duty and are required to interact with all people including Plaintiff using the utmost good faith, undivided loyalty and with inherent fairness. Defendants have breached their fiduciary duty to Plaintiff and have engaged in conduct contrary to the best interest of the Plaintiff.

427) When Plaintiff was working on his claim in the law library as a Pro se litigant at the Jail, three separate times, he was the target and the staff deleted files in his folder.

428) These actions were the product of a Clackamas County Jail guards' misconduct.

429) On June 20th, right before trial; sixty-two of Plaintiffs files were selectively removed at a time that no prisoners were allowed inside the library.

430) When Plaintiff questioned the guards, he was skipped at his next lunch.

431) The Guards were supposed to have the best interest of the inmates in their mind, instead they intentionally damaged Plaintiffs case.

432) They did this because he filed many kites whenever they did not honor his rights he was owed.

433) While violating Plaintiffs rights, he caught covid.

434) This caused more troubles for Plaintiff.

435) The DA also had a duty to review and dismiss charges that was turned in that would have exonerated Plaintiff on day one.

436) There was an asterisk on Plaintiffs inditement used as a wild card, because a true crime was not committed that furthers the awareness of these lack of evidence, no elements were missing on the reports paper for months.

437) Plaintiff requested discovery that was blatantly ignored by the DA.

438) The DA went around Plaintiffs back and pushed the case back because they had no witness, and the DA used the lie that they were ready for trial and made up the excuse that Plaintiff had covid.

439) Plaintiff did not have covid and was dressed and ready for trial in the court room.

440) DA Rebecca Portlock said, "*Get him out of here before the judge sees him.*"

441) They hurried Plaintiff out of the court room.

442) Plaintiff alleges it was because they were not ready for trial.

443) Macy Galla had gone to Mexico because she was being leveraged by the DA, with her children's custody over Plaintiff being incarcerated over something he didn't do.

444) To avoid doing something she did not feel comfortable doing, she left the country and avoided it all together.

445) The DA moved court back 5 weeks in order to wait for Macy to return to Oregon.

446) Plaintiff had to wait in jail. And they DA knew the whole time Plaintiff was not guilty or had a good idea he shouldn't be guilty because they held exonerating evidence in the form of pictures that were taken before the initial arrest, that they had at that proved Plaintiff acting in defense of property and self.

447) . WHEREFORE, the plaintiff demands judgment against the County of Clackamas, Clackamas County Jail, and the District Attorney Rebecca Portlock, West Linn Police officers, and West Linn Police Department, along with Clackamas County Police Department for their lack of training they give to West Linn.

1. for compensatory damages.
2. Treble damages
3. for punitive damages.
4. for attorney s fees, costs, and interest; and
5. for any other relief, this Court deems just and necessary.

COUNT 13

UNJUST ENRICHMENT

448) For the sake of brevity, Plaintiff repeats, reiterates, and fully incorporates all preceding paragraphs with regard to the facts, jurisdiction, and venue.

449) Plaintiff and Defendants had an agreement wherein Plaintiff was to conduct fire repairs and other remodeling of the Property in exchange for compensation from Defendants in the total amount paid for in the insurance claim ($111,943.56). Said compensation was to be paid, at least in part, from the insurance proceeds recouped by Jolie and/or her heirs, the Defendants from Jolie's insurance company to then be paid by them to Plaintiff.

450) Plaintiff began doing such work on the Property on or about June 28th 2017 and continued through the fire at which time the compensation due to Plaintiff on the remodel of Jolie's basement became the unpaid remainder that Jolie continued to withhold from Plaintiff as her unstated collateral that forced Plaintiff to continue working under new labor and construction requests, with their own distinct promises that would also be satisfied with monetary payment to the Plaintiff, but in a perpetual cycle of keeping the Plaintiff from ever being able to reach an even plateau, or par for the work done and the payment paid as owed.

451) Joanna and the Defendants spent the insurance money on various things unrelated to Plaintiff's work, and therefore, did not have sufficient funds to

compensate Plaintiff for his work. (See EXIBIT 27 Jolie's bank statements where she had numerous overdrafts taken from the insurance account, and even multiple House Payments/transfers), yet the repair work done by the Plaintiff was valued at $200,000.00, and payments made to Jolie and the Defendants by the insurance carrier for these fire related damages for the construction and restoration establish an objective basis for the value of the repair work that was done for Jolie by Plaintiff.

452) The foregoing facts allege, demonstrate, and establish that the Plaintiff conferred a benefit upon Jolie; and Jolie was aware of the benefit she had received from Plaintiff to the Property; and it would be unjust for Jolie, and now through her heirs to retain the benefit conferred upon them by the Plaintiff without paying for it.

453) The benefit conferred by the Plaintiff to Jolie and her heirs, as defined by the Restatement, and Wilson v. Guttierrez, 261 Or. App 410 (2014) is: A person confers a benefit upon another if [the person] gives to the other possession of or some other interest in money, land, chattels, or choses in action, performs services beneficial to or at the request of the other, satisfies a debt or a duty of the other, or in any way adds to the other's security or advantage. [The person] confers a benefit not only where [the person] adds to the property of another, but also where [the person] saves the other from expense or loss. The word 'benefit,' therefore, denotes any form of advantage.

454) As a direct and proximate result of the acts and omissions of the Decedent, and her heirs, the Defendants, Plaintiff has suffered substantial financial loss and loss from the services and labor rendered by the undersigned to Jolie for the Property and her benefit.

455) WHEREFORE, Plaintiff demands a judgment in equity against Defendants herein for damages in an amount sufficient to compensate him for the work and benefit that he conferred upon Jolie, the Decedent, as per the claim of Unjust Enrichment, which can be proven through contractual recitals, parole evidence, upon physical inspection, and the unrefuted testimony of the Plaintiff who was privy to the discussions and to doing the work.

COUNT 14

BREACH OF CONTRACT

456) For the sake of brevity, Plaintiff repeats, reiterates, and fully incorporates all preceding paragraphs with regard to the facts, jurisdiction, and venue.

457) Plaintiff asserts the existence of a contract written by Wyatt Bender, and signed by Tyler Allen Lofall, Joanna Lee Bozian, and Wyatt Bender in April of 2019, as well as the Assignment of Benefits signed in June 2020 clarifying the payment of the Fire claim paid by Assurant (See EXIBIT-1 & EXIBIT-2).

458) Plaintiff and Jolie/the Decedent had a verbal agreement concerning the restoration and repair of various part and places of her house, the Property, that initially only concerned the basement, but soon thereafter included multiple areas throughout the Property due to a fire that occurred on December 10, 2018.

459) Plaintiff and Jolie agreed 2 days before Jolie's homeowner's insurance company claims adjuster visited her house, the Property, that Plaintiff's payment for restoring and remodeling the Property would be Jolie making sure that his payment amount would match and be the estimated damage to repair the damaged areas as determined by Jolie's insurance company's appraisal, and the payment thereafter rendered by the company to her.

460) The Plaintiff and Jolie had their verbal agreement memorialized into a written document in April of 2019, signed by Wyatt Bender and witnessed by Angala Miles. This contract was also affirmed on June 24, 2020, with an assignment of benefits form allowing the payment for the restoration of the damage to be payable directly from insurance carrier to the Plaintiff for the agreed upon work done and completed in satisfaction of his obligation to the contract's terms.

461) The foregoing facts establish there were several contracts all inter-related and premised upon Jolie paying the Plaintiff for housing and property remodeling and restoration work, and the Decedent/Jolie, and presently the Defendants are in breach of the contract as compensation in the amount of $111,943.56 is still owed to the Plaintiff for work, materials, and supplies that he spent in doing the agreed upon work on the Property, therefore his injury and loss from the breach of failing to pay him is $111, 943.56.

462) WHEREFORE, Plaintiff demands a judgment against Defendants herein for damages in the amount of $111,943.56 (paid thus far $33,335.83) to compensate him for the work and benefit that he conferred upon Jolie, the Decedent, through their several agreements and contracts that Jolie and the Defendants have breached by refusing to pay the Plaintiff the entire amount owed to him as agreed upon, in addition to all taxable court costs and all available equitable relief the Court can award.

LIABILITY

PLAINTIFF BELIEVES, AND THEREFORE ALLEGES THE FOLLOWING REASONS EACH DEFENDANT IS LIABLE FOR EACH COUNT:

COUNT 1, COUNT 2, COUNT 3, COUNT 4, COUNT 6, COUNT 7, COUNT 8

THE TWO WEST LINN ARRESTING POLICE OFFICERS (DANA GUNNERSON, & CATLIN BLYTH) WEST LINN POLICE DEPO, CLACKAMAS COUNTY POLICE DEPO, COUNTY OF CLACKAMAS, DA REBECCA POLICK.

COUNT 5

CLACKAMAS COUNTY JAIL

COUNT 7, COUNT 9, COUNT 11, COUNT 13, COUNT 14

HEIRS AND THEREFORE LIABILITY HAS NOT BEEN ANSWERED AND CLAIM 21CV02575 MAY HAVE BEEN SAVE ABLE YET AWAITING THE ANSWERS FROM A COURT DATE ON NOVEMBER 7TH 2022 [YET WITH STATUTES OF LIMITATIONS ENCROACHING].

COUNT 10

THE TWO WEST LINN ARRESTING POLICE OFFICERS (DANA GUNNERSON, & CATLIN BLYTH) WEST LINN POLICE DEPO, CLACKAMAS COUNTY POLICE DEPO, COUNTY OF CLACKAMAS, DA REBECCA POLICK, AND TWO JOHN DOE CLACKAMAS COUNTY POLICE OFFICERS [ARRESTED PLAINTIFF ON OR ABOUT MAY 23RD 2022

CLAIM FOR RELIEF

463) On or about March 6th 2022 Defendants, County of Clackamas and the West Linn Police Department [acting through its agents and employees Dana Gunnerson, and Caitlin Blyth], under the color of law and with the apparent authority of the West Linn Police Department, violated directly, or a violation was consequently due to the imprisonment, that they fraudulently caused to the Plaintiff, violating his: First, Fourth, Fifth, Sixth, Eighth, Nineth and Fourteenth Amendment rights under the United States Constitution, in violation of 42 U.S.C. § 1983.

464) Notice to has been served within 180 days keeping Plaintiffs right to bring suit under the laws of the state of Oregon.

465) The 42 U.S.C. § 1983 Civil Rights Violations Interferred with Clackamas County Civil Case 21CV02575 where Plaintiff had a claim for (1) Breach of Contract/Assignment of Benefits, (2) Intentional/Tortious Interference with Contractual Agreement/Economic Relations (3) Intentional/Tortious Infliction of Emotional Distress, (4) Unjust Enrichment, (5) Breach of a Fiduciary Duty.

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1. DENIAL OF FOURTH AND FOURTEENTH AMENDMENT RIGHTS:

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466) by unlawfully and wrongfully seizing plaintiffs' person without probably cause, causing him unlawful detention and incarceration on serious charges that they knew or should have known were false.

467) By unlawfully and wrongfully seizing plaintiffs' person in clear violation of due process.

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2. DENIAL OF FIFTH AND FOURTEENTH AMENDMENT RIGHTS:

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468) By knowingly and willfully submitting bias/false data regarding the transaction that led to the Plaintiff's arrest, that the defendants knew or should have known to be false.

469) By knowingly and willfully uttering false testimony to the District Attorney, which caused the furtherance of prosecution and the root factors that held the Plaintiff in jail where he was unable to tend to the following:

470) Protect his personal property that he lost due to said detainment, in several different locations, all avoidable if the plaintiff was not jailed.

471) Attend his own Civil Trial on June 8th, 2022, and the times leading up to it causing him major issues in claim 21CV02575 where $180,000.00 was on the line.

472) Clackamas County Jails negligence and detainment was the cause of plaintiff catching covid, and the DA used this excuse to push Plaintiffs Court case back five additional weeks [causing additional harm and did not have the right to do so, moreover did it to await a witness whose declared that Plaintiff was innocent, stated on the record that the allegations the State claimed she made were not true].

473) By conspiring to suborn perjured police testimony.

474) By knowingly, willfully, and wrongfully concealing information that would have assisted plaintiff in his defense against serious criminal charges.

PLAINTIFF HAD A TRUE PERSONAL SECOND EXAMPLE DEMONSTRATING THAT THE DEFENDANTS ARE TRAINED TO HANDLE ISSUES UNCONSTITUTIONALLY

The equal protection definition states that every person has the right to be treated fairly and equally in every encounter with the law and the courts. It is stated in the 14th amendment of the Constitution, and its main purpose is to guarantee equal treatment for all citizens, as a fundamental part of a fair justice system. It also protects the country's citizens against unfair differences in pay for the same work and against unfair taxation.

THE EQUAL PROTECTION CLAUSE does not, however, guarantee that everyone will get the same outcome. What it guarantees is equal representation and interpretation of the law regardless of the individual

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NOTE: CLEAR EVIDENCE WAS PROVEN TO BE STANDARD CORRUPTION WHEN PLAINTIFF SPENT FOUR MONTHS IN JAIL AND ON OR ABOUT OCTOBER 27TH 2022, THE PLAINTIFF HAD VIDEO OF MASSIEL GALLA AGAIN ACTING OUT OF LINE, AND WHEN SHE WOKE PLAINTIFF UP WHILE STABBING THE WALL BY HIS HEAD BECAUSE OF SOME MENTAL HEALTH BREAK DOWN SHE WAS HAVING, 911 WAS CALLED.

PLAINTIFF HAD A WHOLE JUG OF WATER POURED ON HIM WHILE SLEEPING, AND WAS SOAKING WET, AND IT THERE WAS TEMPERATURES IN THE 30'S.

PLAINTIFF WAS MADE TO LEAVE IN WET CLOTHES, SHOES, AND CURRENTLY IN PANTS BEFORE WAS GIVEN AN ALTERNATIVE OUTFIT:

THAT ALTERNATIVE WAS MACYS DAUGHTERS ONE PIECE ONESIE OF "COOKIE MONSTER".

POLICE REFUSED TO GET ALL OF PLAINTIFFS PROPERTY OUT OF THE HOUSE, AND MACY DESTROYED THEM THE FOLLOWING DAY.

POLICE HAD NO CARE FOR PLAINTIFFS' RIGHTS, GIVING HIM A BIKE WITH NO BREAKS, A TEENAGE DAUGHTERS OUT-FIT, AND REFUSED TO GIVE HIM HIS PROPERTY WHEN, NOR LOOK AT THE EVIDENCE THAT PLAINTIFF HAD (IN REGARDS TO) THAT HE WAS JUST THE VICTIM OF "MENACING" AND THAT MACY WAS GUILTY OF STRAIGHT SCREAMING LIKE SHE WAS BEING BEAT, WHEN PLAINTIFF WAS NOT EVEN IN THE SAME ROOM AS HER.

NOTE: PLAINTIFF PREVIOUSLY WAS ARRESTED AND SPENT BETWEEN MARCH 6TH 2022, AND CHARGES WHERE NOT DROPPED UNTIL THE 14TH OF JULY 2022 (MOST OF WHICH HE SPENT IN JAIL ON CHARGES COMPLETELY DISMISSED), ON CHARGES THAT THE EQUAL PROTECTION DOCTRIN, AND EMPLOYEES OF THE GOVERNMENT [SUCH AS ALL THE DEFENDANTS MENTIONED HEREIN] WERE EMPLOYED TO PROTECT.

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3. DENIAL OF PLAINTIFFS SIXTH AND FOURTEENTH AMENDMENT RIGHTS:

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475) By Failing to timely disclose "Brady" material to Plaintiff, who was Pro Se.

476) By concealing discoverable information from Plaintiffs defense.

477) By Permitting and encouraging known perjured testimony to be produced at trial by prosecution, even after it was revealed by the (only) witness, that the West Linn Police Officers statements of which there was no other witness to were false, nor was ever claimed by the witness, Massiel Galla.

478) Even after the District Attorney, Rebecca Portlock, knew of the Innocence of the Plaintiff, she still tried to force Plaintiff to take a deal convicting the Plaintiff of the charge she was notified on the record to be false.

479) The District Attorney, Rebecca Portlock, DHS, and Others who have a responsibility to prosecute in the County of Clackamas are playing what Massiel Galla declared "aren't playing fair" by negatively leveraging her children's custody with Plaintiffs freedom.

480) Defendant, County of Clackamas, and the West Linn Police Department failed to supervise or properly train the defendants Dana Gunnerson and Caitlin Blyth, and through their lack of proper supervision and training permitted these individuals to commit some the acts complained about in the preceding paragraph.

481) Defendant, County of Clackamas, and the West Linn Police Department violated the plaintiffs' civil rights under the Fifth, Sixth, and Fourteenth Amendment to the United States Constitution by the following acts:

482) In Failing to give Plaintiff his discovery when they knew it was asked for by motion twice.

483) Failed to reveal delicate information to Plaintiffs defense in the case of Harassment, and such information would or should have ended the wrongful detainment of the Plaintiff, some of that evidence was in the form of pictures that we're from a time prior to Plaintiffs arrest on March 6th, 2022.

484) Defendant, County of Clackamas, and the West Linn Police Department, knew or should have known that their employees filed misleading charges against the Plaintiff to get the result that they wanted, when they did not have the elements to charge the Plaintiff with any charges. – This Information can/will be validated by Massiel Galla in Trial.

485) Supporting evidence behind this are in the other police reports, the fact both police reports match, the body and car cams neither were turned over when discovery was compelled, and in the Plaintiffs motions, and declarations submitted as a defendant in case no. 22CR10908, additionally Motions filed a Show Cause hearing and Habeas Corpas were also filed and ignored on or about April 1st, 2022 [and a two follow ups in June also ignored]

486) The Plaintiffs girlfriend (Massiel Galla) made multiple attempts to reach out to correct the statements that were made by the West Linn Police Department,

that these statements claimed to have been made on her behalf were not statements she made and were fabricated.

487) As a result of these actions, she has had her kids threated/and kept from her, and continue to be leveraged by the District Attorney, and DHS for defending the plaintiff, by protesting the false statements alleged against the plaintiff in said criminal case.

488) The District Attorney and the Courts had a duty to the Plaintiff to supervise the conflicting allegations in a timely manner and failed to do so.

489) The West Linn Police Department is an agency of the County of Clackamas, and functions under the umbrella of the county government. Therefore, the acts and policies of the West Linn Police Department are in effect, the acts, and policies of the county government.

490) In addition, plaintiff was forced to undergo the mental anguish and strain of these proceedings and to expend large sums of money for his defense and will bear lasting and permanent mental scars of the ordeal.

491) The acts of the defendants were wanton, willful, unlawful, malicious, and vicious, without regard for the system of justice in the United States.

492) Under federal law, 18 U.S.C. § 242 makes it a crime to willfully deprive any person of his or her constitutional rights. This statute provides the most common tool used by federal prosecutors to charge police officers for constitutional violations, including false arrest.

493) Hale v. Groce, 304 Or 281, 286, 744 P2d 1289 (1987). An intended beneficiary of a will brought an action against a lawyer who failed to include in the will a gift to the intended beneficiary. The court held that the plaintiff's complaint stated viable claims for damages under two theories: (1) a claim sounding in contract as Lawyer, Accountant Malpractice / Chapter 12 12-17 2012 Revision the intended beneficiary of the lawyer's contract with the decedent and (2) a tort claim based on breach of the duty created by that contract to the plaintiff as its intended beneficiary.

DECLARATORY RELIEF ALLEGATIONS

494) A present and actual controversy exists between Plaintiff and Defendants concerning Plaintiff's rights and the Defendants respective duties. Plaintiff contends that Defendants violated his rights as a free man and violated many of Plaintiffs Rights under numerous constitutional laws, acts, as well as statutes in both Oregon State, and Federal Law. Plaintiff is informed and believes and thereon allege that the Defendants thus far made no attempt to reconcile their harm done to the Plaintiff. Declaratory relief is therefore necessary and appropriate.

495) Plaintiffs seek a judicial declaration of the rights and duties of the respective parties.

496) This situation, with the delay of pay, has rendered two of Plaintiffs helpers hospitalized and on their death bed, unpaid and now homeless; additionally, eight of the closest fifteen people in Plaintiffs life have already been greeted with death. Meanwhile while the defendants have made a mockery of the court room, (in Plaintiffs Civil and Criminal case) hiding behind the procedures of the laws, guided by officers of the court, based on fraudulent actions of Police Officers over Multiple police municipalities,

497) Prosecutorial misconduct allowing Heirs able to steal Plaintiffs retirement. Moreover, Plaintiff put his 401k, personal funds, and literally every second of his time for months, on the line in order to complete a project in good faith and for the benefit of the now deceased Joanna Lee Bozian, by using their fiduciary duty to intercept an assignment, and has been leveraged and extorted, wrongfully arrested and imprisoned for a crime he didn't commit.

498) Plaintiff is an individual with no background in law and has been leveraged into the worst financial and personal position of Plaintiffs life due to absent heirs' bad faith actions and the Misconduct of their Attorney in order to capitalize on Plaintiffs designed [by heirs] misfortunes.

499) Then the situation was blindsided by a false arrest and this false arrest couldn't have come at a worse time; Plaintiff lost property in four locations with an estimated value exceeding $100,000.00, a civil case Lofall vs. The Estate of Joanna Lee Bozian and Zac Bond / Teague Bond now crippled due to time restraints on the lawsuit already stretched long due to trial being pushed back over a year due to Covid.

THE COURT HAS THE POWER TO STEP IN ON CASES LIKE THIS, AND PLAINTIFF PRAYS THAT IT DOES, THAT IT RELEASE HIM OF BURDENS HE HAS BEEN UNFAIRLY GIVEN.

JURY DEMAND

Plaintiff demands trial by jury on all issues triable by Jury in this Action.

PRAYER / MONEY AWARD

PLAINTIFF SEEKS THE FOLLOWING:

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500) Declaratory Judgement that the acts of the County of Clackamas, The West Linn Police Department, Clackamas Police Department, the Clackamas County Jail, and their agents and employees, violated the plaintiffs' entitled rights.

501) An award of reasonable costs and expenses to plaintiff in this action, including attorney's fees, pursuant to 42 U.S.C §1988; and 1983 if the court so allows.

502) An award of compensatory damages to plaintiff in an amount to be determined by the trier of fact as sufficient to compensate the plaintiff for the injuries described in this complaint, but no less than $500,000.00.

503) An award of punitive damages to plaintiff in an amount to be determined by the trier of fact as sufficient to punish each defendant against whom these damages are awarded and sufficient to deter similar conduct in the future by these defendants. Damages paid to plaintiff in an amount to be decided by the trier of fact as sufficient to compensate the Plaintiff for the injuries described in this complaint, but no less than $500,000.00

504) An award to plaintiff of all other relief that is just and proper; including but not limited to the following:

505) Civil lawsuit that was directly and irreparable damages due to plaintiff being incarcerated as well as duties of the defendants not honored in the favor of the plaintiff for an amount not less than $180,000.00.

506) Pain and suffering for these further delays; Damages paid to plaintiff in an amount to be determined by the trier of fact as sufficient to compensate the plaintiff for the injuries described in this complaint, but no less than $100,000.00.

507) Damage to reputation due to these delays, and loss of friendships and trusts, diminishing health for the same, Time Lost, and not reclaimable, Time spent with vision problems and** blind due to lack of financial freedoms that were due, Emotional and mental anguish, PTSD and loss of belief in the system. Damages paid to plaintiff in an amount to be determined by the trier of fact as sufficient to compensate the plaintiff for the injuries described in this complaint, but no less than $100,000.00

PERSONAL PROPERTY AT THE FOLLOWING LOCATIONS THAT WAS LEFT AND LOST DUE TO BEING WRONGFULLY IMPRISONED

a) PROPERTY LOST AT 423 NAGEL RD, WASHOUGAL WA - ESTIMATED AT $75,000.00.

b) PROPERTY LOST AT 2535 SUNSET AVE, WEST LINN OR 97068 – ESTIMATED AT $20,000.00.

c) PROPERTY LOST AT 1906 RIDGE ROAD NE, SHELTON WA - ESTIMATED AT $12,000.00.

d) PROPERTY STORED IN CLACKAMAS LOST DUE TO CLACKAMAS COUNTY POLICE DEPARTMENT ALLOWING SOMEONE ELSE TO DRIVE AWAY THE VEHICLE THAT PLAINTIFF WAS ARRESTED AFTER NEWLY

RECLAIMING A FRIEND'S [JOHN BARACHELLO], CAR FROM SOMEONE WHO STOLE HIS 2008 CRV. – ESTIMATED AT $2,500.00.

e) TOTAL ESTIMATED PERSONAL PROPERTY LOST DUE TO THE DEFENDANTS $109,500.00.

f) REQUEST FOR INTERESTS DUE

g) ECONOMIC DAMAGES

h) NON-ECONOMIC DAMAGES

i) COMPENSATORY DAMAGES

j) PUNITIVE DAMAGES IF SO AVAILABLE

k) BACKPAY

l) SUFFERING FOR HARDSHIPS

m) TREBLE DAMAGES

n) CONSEQUENTIAL DAMAGES IF SO AVAILABLE

o) AND ANY OTHER DAMAGES THAT THE COURT DEEM JUST.

ORS TORT LIABILITY LIMITS IN PURSUANT TO ORS 30.270LIMIT DAMAGES $2,418,100.00

INJUNCTIVE RELIEF

508) No plain, adequate, or complete remedy at law is available to Plaintiffs to redress the wrongs addressed herein, to whit the harm caused by the Defendants and Heirs has caused the loss of financial freedoms, mobility, trust, health, and due these wrongs [8by defendants and heirs] harm in unmeasurable ways have been undeniably rendered against the Plaintiff that time has greatly increased, and immediate resolution is owed.

PLAINTIFF REQUESTS AN ORDER REQUIRING THE DEFENDANTS TO PAY PLAINTIFF $5,000 A MONTH WITH AN ADDITIONAL $5,000 THE FIRST MONTH IN ORDER TO GET A HOLD OF THE HARMS CAUSED BY THE DEFENDANTS ACTIONS, UNTIL THE CONCLUSION OF THIS MATTER.

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509) this will create less harms by the end of case, assisting in saving the defendants money and is undeniably owed due to: (1.) False Arrest, (2.) Catching Covid in jail, (3.) West Linn Police officers arrest costing the Plaintiff property and claim on Case 21CV02575 by their False Arrest and Incarceration caused infection of Covid (causing Plaintiff to be unable to correct his case and prevail on his lawsuit on June 8th, 2022.

510) If this Court does not grant the injunctive relief sought herein, Plaintiff will be [even more so] irreparably harmed.

Certification and Closing

Under Federal Rule of Civil Procedure 11, by signing below, I certify to the best of my knowledge, information, and belief that this complaint: (1) is not being presented for an improper purpose, such as to harass, cause unnecessary delay, or needlessly increase the cost of litigation; (2) is supported by existing law or by a nonfrivolous argument for extending, modifying, or reversing existing law; (3) the factual contentions have evidentiary support or, if specifically so identified, will likely have evidentiary support after a reasonable opportunity for further investigation or discovery; and (4) the complaint otherwise complies with the requirements of Rule 11.

I agree to provide the Clerk's Office with any changes to my address where case-related papers may be served. I understand that my failure to keep a current address on file with the Clerk's Office may result in the dismissal of my case.

I hereby Declare that the above statement is true to the best of my knowledge and belief, and I understand it is made for use as evidence in court and subject to penalty for perjury

RESPECTFULLY SUBMITTED BY THE PLAINTIFF ON HIS OWN BEHALF

DATED THIS 17thst DAY OF DECEMBER 2022

/s/ Tyler A Lofall
Tyler A. Lofall
Plaintiff Pro se

IN THE CIRCUIT COURT FOR THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS

AUTHORITIES GOVERNED BY STATE OF OREGON AND FEDERAL LAW, PRIMARILY IN THE FOLLOWING:

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(1) A 42. U.S.C. 1983 CLAIM OF DEPRIVATION OF RIGHTSCONSTITUTIION OF THE UNITED STATES OF AMERICAPRIMARILY AMENDMENTS 1ST, 4TH, 5TH, 6TH, 8TH, 9TH, 14TH AMENDMENTS L

(2) TORT ACTIONS AGAINST PUBLIC BODIES (A/K/A OREGON TORT CLAIMS ACT): O.R.S. §§ 30.260 – 30.300 (1967). "PUBLIC BODY" INCLUDES CITIES, MUNICIPALITIES, AND OTHER LOCAL PUBLIC BODIES

(3) ***RIGHT OF REVOLUTION***

(4) MADE WHOLE DOCTRINE

(5) OREGON'S RESCUE DOCTRINE

(6) MEND THE HOLD DOCTRINE

(7) RIGHT TO CURE

(8) UCC 9

(9) EQUAL RIGHTS DOCTRINE

(10) RIGHT TO PROPERTY

(11) RIGHT TO DUE PROCESS

(12) PREVENTATIVE DETENTION ACT

(13) RIGHT TO PRIVATE PROPERTY

(14) RIGHT TO PROTEDCT PROPERTY

IN THE CIRCUIT COURT FOR THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS

(15) RIGHT TO LIBERTY AND

SECURITY OF PERSON

IN THE CIRCUIT COURT FOR THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS

VERIFICATION

Case No.:22CV39629

I, Tyler A. Lofall, declare as follows,

1. I am the plaintiff in the present case, a citizen of the united states of America, and a resident of the state of Oregon., and I was born in Bremerton, WA January 18th 1985.

2. I have personal knowledge of myself, my activities, and my intentions, including those set out in the foregoing verified complaint for declaratory and injunctive relief, and if called on to testify, I would competently testify as to the matters stated herein.

3. I have personal knowledge of this complaint in full detail, and I am the one who wrote it in its entirety. I declare that I wrote this complaint in a pro se capacity on my own behalf. I have written this complaint out of need, and I am not trained in law, nor do I guarantee this paper to be faultless; although If asked I would testify competently as person who has reached majority age, and I intend to use my rights to take back what rights were taken from what has been taken from me and caused me harm in my person, my reputation, my finances.

4. As mentioned in this action Plaintiff prays for the following relief.

5. Plaintiff seeks for injunctive and permanent relief to challenge the constitutionality of any provision or actions in pursuant to the constitutionality and deprivation of my

rights, as a citizen of the United States of America. primarily in 42 U.S.C 1983 under the provisions of the fourth, fifth, sixth, eighth, and fourteenth amendments.

6. I, Plaintiff state that I was false arrested and imprisoned for nearly four months, this year and under the Law of the United States am owed on the face of this complaint without question for being detained and for the lack of care provided in catching covid while in jail, and it is my prayer to use pertinent law, as soon as practical, so that I may have expenses to fight the rest of this case due to the actions that have gotten us to this point in these matters have taken my liberties and everything I own from me taking the ability to defend myself away until I can have a place of residence.

7. "[A]dvance[ment] on the docket and … expedite[ion] to the greatest possible extent the disposition of this action… "42 USC 1983 claim under the previsions of state law.

8. So far in these matters the rights of yours truly have been undoubtedly unconstitutional, and those that have been sword to protect the citizens of the United States gave failed to do so. It is unconstitutional for someone to have money taken from them, they do not have the means to hire an attorney because of that fraud and theft. It is a clear violation of one's rights, and a breach of the law. And the Agencies hired to protect the rights of our citizens and be ignored.

9. It is a double violation of ones rights, if then while that same citizen is down, that person get arrested where no crime had been committed and as in this case here Plaintiff was in the right, and the equal protection clause was also violated when the officers of color of the law then turned for their own reputation and in fear of mistake prosecuted harder, and leveraged Plaintiffs partner with the custody of the partners

children, meanwhile causing bodily harm to the Plaintiff, the Plaintiffs property, and the ability to defend ones self.

10. Where for The Plaintiff Prays to take these matters to court, and in this complaint to follow verifies to the fullest, that All information within these filings is true to the best of the Plaintiffs knowledge and awareness. And this filing is in the best form that Plaintiff knows how to give under the conditions he's been given.

11. Plaintiff doesn't wish to proceed Forma Paupers, Plaintiff is forced this way, and Prays to the court that the court see that Plaintiff is homeless, with nothing because of the attacks against his constitutional rights, and Plaintiff asks the court for help. Under UTCR 1.100, and ORCP 15.D and Plaintiff could really use counsel and I find it unconstitutional that the same opposition I contend against, is the ones that made me homeless, and the reason Plaintiff have all this harm done.

12. Plaintiff Testifies and swears and alleges that before he harms his self to the point of hyperthermia again, it only be justified that the Plaintiff will go take from those who take from me in values that Plaintiff has lost, by means necessary to do so. And if the defendants don't wish for these actions to happen, that Plaintiff will need relief in an amount immediately to insure the non-combative nature of adults until trial court gets to hear the case on the matter.

13. Plaintiff prays for and other relief that the court in its discretion deems just and appropriate.

14. I verify under penalty of perjury under the laws of the United States of America that factual statements in this complaint concerning myself, my activities, and my

IN THE CIRCUIT COURT FOR THE STATE OF OREGON
FOR THE COUNTY OF CLACKAMAS

intentions are true, and correct, as are their factual statements concerning the Government employees and their actions and their intentions to the best of my understanding. 42 U.S.C. 1983

15. . Executed on the 19th day of December 2022

16. Respectfully submitted

TYLER ALLEN LOFALL

PLAINTIFF PROSE

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